

**Bureau of Reclamation
Request for Quotes 140R6026R0005
6552 HH AV Cabling and Infrastructure
Hungry Horse, MT**

This is a solicitation for commercial services for audio visual cabling and infrastructure services at the Hungry Horse Field Office, Hungry Horse Montana. The Hungry Horse AV Cabling and Infrastructure Project aims to replace, upgrade, and integrate analog devices at the Hungry Horse Field Office (HHFO). The scope of this firm fixed price contract is for supplies and services ancillary to the supplies as identified in the included Statement of Work.

Solicitation number 140R6026R0005 is issued as a request for quote (RFQ) solicitation document and incorporated provisions and clauses are those in effect through Federal Acquisition Circular 2025-05. This is a total small business set-aside under NAICS code 238210 Electrical Contractors and Other Wiring Installation Contractors with an associated small business size standard of 1,000 employees.

Offerors must be registered in SAM.gov to be considered for award.

Offerors are cautioned to carefully review the offer submission requirements. To be considered qualified for this work, offerors must fully address all evaluation factors outline under FAR clause 52.212-2 in the solicitation package. The factors include:

- Work Plan & Schedule
- Past Performance
- Price

The Government anticipates making an award without discussions. However, the Government reserves the right to conduct discussions if the Contracting Officer determines them to be necessary. Therefore, the offeror's initial quote should contain the offeror's best terms from a cost or price and technical standpoint.

Offerors may submit questions electronically, via email, to Mitchell Frost, Contracting Officer, at mfrost@usbr.gov. Questions need to be submitted no later than March 11, 2026 at 11:59 PM EDT. Questions received after that date will not be entertained. Applicable answers will be provided via amendment to the solicitation through the SAM website at www.sam.gov, is

Written, signed quotes with contact information are due no later than March 23, at 11:59 PM EDT by email to mfrost@usbr.gov along with any other documentation the vendor determines would add value to the quotation and assist the government in determining a quotation is of the best value to the government (a PDF of the full announcement will be attached to this announcement) and any other necessary documentation to the contracting officer listed above. For information or questions regarding this Request for Quote, please contact Mitchell Frost at mfrost@usbr.gov.

Please Note: System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations, including 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation, and paragraph (t) of 52.212-3, Offeror

Representations and Certifications—Commercial Products and Commercial Services.
Agencies will not consider or use these representations. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER

0044033836

PAGE 1 OF

2. CONTRACT NUMBER
140R6026C0002

3. AWARD/EFFECTIVE DATE

4. ORDER NUMBER

5. SOLICITATION NUMBER

6. SOLICITATION ISSUE DATE

7. FOR SOLICITATION INFORMATION CALL:

a. NAME

Mitchell Frost

b. TELEPHONE NUMBER (No collect calls)

0000000000

8. OFFER DUE DATE/ LOCAL TIME

9. ISSUED BY

CODE

R60

Bureau of Reclamation
Missouri Basin Regional Office
2021 4th Avenue North
Billings MT 59101

10. THIS ACQUISITION IS

☐ UNRESTRICTED OR ☒ SET ASIDE: % FOR:

☒ SMALL BUSINESS

☐ WOMEN-OWNED SMALL BUSINESS (WOSB)

NORTH AMERICAN
INDUSTRY CLASSIFICATION
STANDARD (NAICS):

238210

☐ HUBZONE SMALL BUSINESS

☐ ECONOMICALLY DISADVANTAGED

SIZE STANDARD:

\$19

☐ SERVICE-DISABLED

☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB)

☐ VETERAN-OWNED SMALL BUSINESS (SDVOSB)

☐ 8(A)

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED

☐ SEE SCHEDULE

12. DISCOUNT TERMS

13a. THIS CONTRACT IS A
☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)

13b. RATING

14. METHOD OF SOLICITATION REQUEST
☐ REQUEST ☐ INVITATION ☐ FOR
☐ FOR QUOTE ☐ FOR BID ☐ PROPOSAL
(RFQ) (IFB) (RFP)

15. DELIVER TO

CODE

0011285572

See Schedule

16. ADMINISTERED BY

CODE

R60

See Schedule

17a. CONTRACTOR/ OFFEROR

CODE

FACILITY CODE

18a. PAYMENT WILL BE MADE BY

CODE

IPP INV

Invoice Processing Platform System
US Department of Treasury
<https://www.ipp.gov>

TELEPHONE NUMBER

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NO.

20. SCHEDULE OF SUPPLIES/SERVICES

21. QUANTITY

22. UNIT

23. UNIT PRICE

24. AMOUNT

DRAFT

Continued...

(Use Reverse and/or Attach Additional Sheets as Necessary)

25. ACCOUNTING AND APPROPRIATION DATA

See schedule

26. TOTAL AWARD AMOUNT (For Government Use Only)

☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. ADDENDA FAR 52.212-3 AND 52.212-5 ARE ATTACHED.

☐ ARE ☐ ARE NOT ATTACHED

☒ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA

☒ ARE ☐ ARE NOT ATTACHED

☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)

30b. NAME AND TITLE OF SIGNER (Type or print)

30c. DATE SIGNED

31b. NAME OF CONTRACTING OFFICER (Type or print)

31c. DATE SIGNED

Mitchell Frost

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
00010	Bureau of Reclamation-PN-GCPO Hungry Horse Field Office 2501 Colorado Blvd Hungry Horse MT 59919-0131 US Delivery: 09/11/2026 6552-HH AV Cabling & Infrastructure Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES				\$0
DRAFT					
Continued...					

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED☐ INSPECTED☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

40. PAID BY

38. S/R ACCOUNT NUMBER

39. S/R VOUCHER NUMBER

42a. RECEIVED BY (Print)

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42b. RECEIVED AT (Location)

42c. DATE RECEIVED (MM/DD/YYYY)

42d. TOTAL CONTAINERS

Clauses

52.252-2 CLAUSES INCORPORATED BY REFERENCE

(Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

Federal Acquisition Regulation: <https://www.acquisition.gov/far>

Department of the Interior Acquisition Regulation: <https://www.acquisition.gov/diar>

CLAUSE NUMBER	CLAUSE TITLE	CLAUSE DATE
52.204-12	Unique Entity Identifier Maintenance	(Oct 2016)
52.204-13	System for Award Management Maintenance.	(Oct 2018)
52.204-18	Commercial and Governmental Entity Code Maintenance	(Aug 2020)
52.204-19	Incorporation by Reference of Representations and Certifications	(Dec 2014)
52.212-4	Contract Terms and Conditions - Commercial Products and Commercial Services.	(Nov 2023)
52.226-7	Drug-Free Workplace	(May 2024)
52.223-5	Pollution Prevention and Right-to-Know Information.	(May 2024)
52.227-1	Authorization and Consent.	(Jun 2020)
52.229-3	Federal, State, and Local Taxes (Deviation)	(Sep 2025)
52.232-39	Unenforceability of Unauthorized Obligations.	(Jun 2013)
52.233-1	Disputes	(May 2014)
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	(Apr 1984)
52.242-13	Bankruptcy	(July 1995)
52.242-15	Stop Work Order	(Aug 1989)
52.246-2	Inspection of Supplies-Fixed-Price	(Aug 1996)
52.246-4	Inspection of Services-Fixed-Price	(Aug 1996)
52.247-34	F.O.B. Destination	(Jan 1991)
52.249-2	Termination for Convenience of the Government (Fixed-Price)	(Apr 1984)
52.253-1	Computer Generated Forms	(Jan 1991)

DOI-AAAP-0028 ELECTRONIC INVOICING AND PAYMENT REQUIREMENTS- (Feb 2021) INVOICE PROCESSING PLATFORM (IPP)

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

'Payment request' means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is:

<https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice: The Offeror shall submit a copy of the regular offeror invoice and any other documentation requirement to substantiate the invoice utilizing the attachments feature in IPP. Offeror invoices submitted shall match in every aspect to the information submitted in IPP. This shall include invoice number including punctuation (i.e., 123-4R or other invoice data), dates of service, service name and offeror name.

A copy of the invoice and coversheet shall be submitted to Mitchell Frost, mfrost@usbr.gov, via e-mail when the invoice is uploaded into IPP. Failure to e-mail the invoice may cause delays in payment.

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

**52.212-5 CONTRACT TERMS AND CONDITIONS (Mar 2025)(Deviation 2025-O0003)
REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS—
COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES**

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

- (1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).
- (3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).
- (5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).
- (6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).
- (7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor *shall* comply with the FAR clauses in this paragraph (b) that the *Contracting Officer*

has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to *acquisitions of commercial products and commercial services*:

[X] (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with Alternate I (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

[] (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

[] (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

(1) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900](#)(a).

[X] (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

[] (6) [Reserved].

[X] (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

[] (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

[x] (9) 52.204-27 Prohibition on a ByteDance Covered Application (JUN 2023)

(10) 52.204-28, Federal *Acquisition* Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide *Acquisition* Contracts, and Multi-Agency Contracts. (Dec 2023) ([Pub. L. 115-390](#), title II).

[] (11)(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

(ii) *Alternate*[] I (Dec 2023) of 52.204-30.

[X] (12) 52.209-6, Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (Nov 2021) (31 U.S.C. 6101 note).

[] (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

[] (14) [Reserved]

[] (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).

[] (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

(17) [Reserved]

[X] (18) (i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644). [] (ii) Alternate I (Mar 2020) of 52.219-6.

[] (19) (i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

[] (ii) Alternate I (Mar 2020) of 52.219-7.

[] (20) 52.219-8, Utilization of Small Business Concerns (FEB 2024) (15 U.S.C. 637(d)(2) and (3)).

[] (21) (i) 52.219-9, Small Business Subcontracting Plan (Sep 2023) (15 U.S.C. 637(d)(4)).

[] (ii) Alternate I (Nov 2016) of 52.219-9.

[] (iii) Alternate II (Nov 2016) of 52.219-9.

[] (iv) Alternate III (Jun 2020) of 52.219-9.

[] (v) Alternate IV (Sep 2023) of 52.219-9

[] (22) (i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).

[] (ii) Alternate I (Mar 2020) of 52.219-13.

[X] (23) 52.219-14, Limitations on Subcontracting (OCT 2022) Limitations on Subcontracting (Oct 2022) (15 U.S.C. 637s).

[] (24) 52.219-16, Liquidated Damages-Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

[] (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C.

657f).

[X] (26) (i) 52.219-28, Post Award Small Business Program Representation (Feb 2024) (15 U.S.C. 632(a)(2)).

[] (ii) Alternate I (MAR 2020) of 52.219-28.

[] (27) 52.219-29, Notice of Set-Aside for, or Sole Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

[] (28) 52.219-30, Notice of Set-Aside for, or Sole Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).

[] (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).

[] (30) 52.219-33, Nonmanufacturer Rule (Sep 2021) ([15 U.S.C. 637\(a\)\(17\)](#)).

[X] (31) 52.222-3, Convict Labor (Jun 2003) (E.O.11755).

[X] (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (FEB 2024) (E.O.13126).

[] (33) [RESERVED].

[] (34) [RESERVED].

[] (ii) Alternate I (Feb 1999) of 52.222-26.

[X] (35) (i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

[] (ii) Alternate I (Jul 2014) of 52.222-35.

[X] (36) (i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

[] (ii) Alternate I (Jul 2014) of 52.222-36.

[X] (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

[] (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

[X] (39) (i) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

[] (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

[X] (40) 52.222-54, Employment Eligibility Verification (May 2022). (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in 22.1803.)

[] (41) (i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) ([42 U.S.C. 6962\(c\)\(3\)\(A\)\(ii\)](#)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

[] (ii) Alternate I (May 2008) of 52.223-9 ([42 U.S.C. 6962\(i\)\(2\)\(C\)](#)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

[] (42) [52.223-11](#), *Ozone-Depleting Substances* and High Global Warming Potential Hydrofluorocarbons (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

[] (43) [52.223-12](#), Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

[] (44) [52.223-20](#), Aerosols (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

[] (45) [52.223-21](#), Foams (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

[X] (46) [52.223-23](#), *Sustainable Products and Services* (May 2024) (Deviation Feb 2025) ([7 U.S.C. 8102](#), [42 U.S.C. 6962](#), [42 U.S.C. 8259b](#), and [42 U.S.C. 7671i](#)). [See full text below]

[] (47) (i) 52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a). [] (ii)

Alternate I (Jan 2017) of 52.224-3.

[] (48) (i) 52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).

[] (49) (i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Pub. L. 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).

[] (ii) Alternate I [Reserved].

[] (iii) Alternate II (JAN 2025) of 52.225-3.

[] (iv) Alternate III (NOV 2023) of 52.225-3.

[] (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).

- [X] (51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- [] (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- [] (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- [] (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).
- [X](55) [52.226-8](#), Encouraging Contractor Policies to Ban Text Messaging While Driving (*May 2024*) ([E.O. 13513](#)).
- [X] (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).
- [X] (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- [] (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- [X] (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct 2018) (31 U.S.C. 3332).
- [] (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- [] (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).
- [] (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).
- [](64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)). [](65) (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).
- [] (ii) Alternate I (Apr 2003) of 52.247-64.
- [] (iii) Alternate II (Nov 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[X] (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

[X] (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

This Statement is for Information Only: It is not a Wage Determination

Employee Class Monetary Wage-Fringe Benefits

[List as necessary]

[X] (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

[] (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29U.S.C.206 and 41 U.S.C. chapter 67).

[] (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

[] (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

[] (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

[] (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

[] (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

(d) *Comptroller General Examination of Record*. The Contractor *shall* comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the *simplified acquisition threshold*, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the *United States*, or an authorized representative of the Comptroller General, *shall* have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor *shall* make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated *shall* be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of *claims* arising under or relating to this contract *shall* be made available until such appeals, litigation, or *claims* are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii) (A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

(B) Alternate I (Dec 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (Feb 2024) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) [RESERVED].

(x) [RESERVED].

(xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

- (xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).
- (xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.
- (xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).
- (xvi) (A) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

- (xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- (xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).
- (xix) 52.222-54, Employment Eligibility Verification (May 2022) (E.O. 12989).
- (xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).
- (xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).
- (xxii) (A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

- (xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- (xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.
- (xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.
- (xxvi) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).
- (xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

52.204-30 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT (Dec 2023) **ORDERS— PROHIBITION.**

(a) *Definitions.* As used in this clause—

Covered article, as defined in [41 U.S.C. 4713\(k\)](#), means—

- (1) Information technology, as defined in [40 U.S.C. 11101](#), including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 ([47 U.S.C. 153](#));
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see [32 CFR part 2002](#)); or

- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring the removal of covered articles from executive agency information systems or the exclusion of one or more named sources or named covered articles from executive agency procurement actions, as described in [41 CFR 201–1.303\(d\)](#) and [\(e\)](#):

- (1) The Secretary of Homeland Security may issue FASCSA orders applicable to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.
- (2) The Secretary of Defense may issue FASCSA orders applicable to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.
- (3) The Director of National Intelligence (DNI) may issue FASCSA orders applicable to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Intelligence community, as defined by [50 U.S.C. 3003\(4\)](#), means the following—

- (1) The Office of the Director of National Intelligence;
- (2) The Central Intelligence Agency;
- (3) The National Security Agency;
- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;
- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
- (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

National security system, as defined in [44 U.S.C. 3552](#), means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

- (1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or
- (2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of any covered articles, or any products or services produced or provided by a source. This applies when the covered article or the source is subject to an applicable FASCSA order. A reasonable inquiry excludes the need to include an internal or third-party audit.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

(b) *Prohibition.*

(1) Unless an applicable waiver has been issued by the issuing official, Contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA orders as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase “FASCSA order” in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders identified in paragraph (b)(1).

(3) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resultant contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR [4.2304\(c\)](#)). However, see paragraph (c) of this clause.

(5)

(i) If the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification, then the Contractor shall disclose the following:

(A) Name of the product or service provided to the Government;

(B) Name of the covered article or source subject to a FASCSA order;

(C) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied or supplies the covered article or the product or service to the Offeror;

(D) Brand;

(E) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(F) Item description;

(G) Reason why the applicable covered article or the product or service is being provided or used;

(ii) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (b)(5)(i) to determine if any waiver is warranted. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise covered by a FASCSA order and to instead pursue other appropriate action.

(c) *Notice and reporting requirement.*

(1) During contract performance, the Contractor shall review *SAM.gov* at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (b) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance.

(3)

(i) The Contractor shall submit a report to the contracting office as identified in paragraph (c)(3)(ii) of this clause, if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s) identified in paragraph (b) of this clause, or a new FASCSA order identified in paragraph (c)(2) of this clause. For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(ii) If a report is required to be submitted to a contracting office under (c)(3)(i) of this clause, the Contractor shall submit the report as follows:

(A) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(B) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(4) The Contractor shall report the following information for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order, pursuant to paragraph (c)(3)(i) of this clause:

(i) Within 3 business days from the date of such identification or notification:

(A) Contract number;

(B) Order number(s), if applicable;

(C) Name of the product or service provided to the Government or used during performance of the contract;

(D) Name of the covered article or source subject to a FASCSA order;

(E) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Contractor;

(F) Brand;

(G) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(H) Item description; and

(I) Any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (c)(4)(i) of this clause:

(A) Any further available information about mitigation actions undertaken or recommended.

(B) In addition, the Contractor shall describe the efforts it undertook to prevent submission

or use of the covered article or the product or service produced or provided by a source subject to an applicable FASCSA order, and any additional efforts that will be incorporated to prevent future submission or use of the covered article or the product or service produced or provided by a source that is subject to an applicable FASCSA order.

(d) *Removal.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that is subject to an applicable FASCSA order.

(e) *Subcontracts.*

(1) The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (c)(1) of this clause, in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products and commercial services.

(2) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the contract and any subcontracts and other contractual instruments under the contract. The Contractor or higher-tier subcontractor shall notify their subcontractors, and suppliers under other contractual instruments, that the FASCSA orders in the solicitation that are not in SAM apply to the contract and all subcontracts.

52.228-5 Insurance-Work on a Government Installation

Jan 1997

(a) The Contractor shall, at its own expense, provide and maintain during the entire performance of this contract, at least the kinds and minimum amounts of insurance required in the Schedule or elsewhere in the contract.

(b) Before commencing work under this contract, the Contractor shall notify the Contracting Officer in writing that the required insurance has been obtained. The policies evidencing required insurance shall contain an endorsement to the effect that any cancellation or any material change adversely affecting the Government's interest shall not be effective-

(1) For such period as the laws of the State in which this contract is to be performed prescribe; or

(2) Until 30 days after the insurer or the Contractor gives written notice to the Contracting Officer, whichever period is longer.

(c) The Contractor shall insert the substance of this clause, including this paragraph (c), in subcontracts under this contract that require work on a Government installation and shall require subcontractors to provide and maintain the insurance required in the Schedule or elsewhere in the contract. The Contractor shall maintain a copy of all subcontractors' proofs of required insurance, and shall make copies available to the Contracting Officer upon request.

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any **Department of the Interior Acquisition Regulation (48 CFR Chapter 14)** clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

DIAR 1452.201-70 AUTHORITIES AND DELEGATIONS (SEP 2011)

(a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept

nonconforming work.

(b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.

(c) The COR is not authorized to perform, formally or informally, any of the following actions:

- (1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;
- (2) Waive or agree to modification of the delivery schedule;
- (3) Make any final decision on any contract matter subject to the Disputes Clause;
- (4) Terminate, for any reason, the Contractor's right to proceed;
- (5) Obligate in any way, the payment of money by the Government.

(d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (a) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

(f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.

(g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

WBR 1452.201-80 CONTRACTING OFFICER'S REPRESENTATIVE'S AUTHORITIES AND LIMITATIONS -- BUREAU OF RECLAMATION (MAY 2018)

a) Performance of the work under this contract shall be subject to the technical direction of the Reclamation Contracting Officer's Representative (COR). The term "technical direction" is defined to include, without limitation:

- a. Inspecting and accepting or rejecting work performed under the contract.
- b. Representing the Government in technical phases of the work. The COR is responsible for the technical administration of the contract and will provide instructions and interpretations to the Contractor on all technical matters relating to the contract. The COR will supervise or oversee all Government technical and administrative personnel assigned to assist the COR.
- c. Reviewing and, where required by the contract, approving submittals of technical data, shop drawings, samples, literature, plans, or other data required to be delivered by the Contractor to the Government.

b) The Contractor will receive a copy of the written COR designation from the Contracting Officer. It will

- specify the extent of the COR's authority to act on behalf of the Contracting Officer.
- c) Technical direction must be within the scope of work stated in the contract. Only the Contracting Officer is authorized to determine if a change is within the scope of the contract; therefore, the COR does not have the authority to, and may not, issue any technical direction that -
- (1) Constitutes a direction of additional work outside the Contract requirements;
 - (2) Constitutes a change as defined in the contract clause entitled "Changes;"
 - (3) In any manner causes an increase or decrease in the total contract cost, or the time required for contract performance;
 - (4) Changes any of the expressed terms, conditions or specifications of the contract; or
 - (5) Interferes with the Contractor's right to perform the terms and conditions of the contract.
- d) All technical direction shall be issued in writing by the COR.
- e) The Contractor must proceed promptly with the performance of technical direction duly issued by the COR in the manner prescribed by this clause and within its authority under the provisions of this clause. If, in the opinion of the Contractor, any instruction or direction by the COR falls within one of the categories defined in (c)(1) through (c)(5) of this clause, the Contractor must not proceed and must notify the Contracting Officer in writing within five (5) working days after receipt of any such instruction or direction and must request the Contracting Officer to modify the contract accordingly. Upon receiving the notification from the Contractor, the Contracting Officer must -
- (6) Advise the Contractor in writing after receipt of the Contractor's letter that the technical direction is within the scope of the contract effort and does not constitute a change under the Changes clause of the contract; or
 - (7) Advise the Contractor that the Government will issue a written change order.
- f) A failure of the Contractor and Contracting Officer either to agree that the technical direction is within the scope of the contract or to agree upon the contract action to be taken with respect to the technical direction will be subject to the provisions of the clause entitled "Disputes."

WBR 1452.223-80 Asbestos-Free Warranty -- Bureau of Reclamation

(Aug 2021)

- (a) The Contractor warrants that all items delivered, or work required by the contract, shall be free of asbestos in any form whatsoever.
- (b) The Contractor may request the Contracting Officer to approve an exception to this prohibition when an asbestos-free product is not available. Such requests shall be fully documented and submitted as soon as possible after the contractor determines that an asbestos-free product is not available.

WBR 1452.223-81 Safety and Health -- BUREAU OF RECLAMATION

(Oct 2022)

- (a) The Contractor shall not require any person employed in the performance of this contract (including subcontracts) to work under conditions which are unsanitary, hazardous, or dangerous to an employee's health or safety.
- (b) Contractor shall comply with the most current version of the Bureau of Reclamation's Reclamation Safety and Health Standards (RSHS) and, if incorporated, 52.236-13 Accident Prevention.

The RSHS manual can be obtained at the Bureau of Reclamation's Safety and Health Standards website.

- (c) Comply with the standards (29 CFR) issued by the Occupational Safety and Health Administration (OSHA), U.S. Department of Labor, www.osha.gov.
- (d) In the event there is a conflict between the requirements contained in paragraphs (b) and (c) referenced herein, or in the Statement of Work (SOW) or Performance Work Statement (PWS), the more stringent requirement shall prevail.
- (e) If required in the SOW or PWS, the Contractor shall submit a written proposed safety program as prescribed in the RSHS and the written specifications.
- (f) The Contractor shall maintain an accurate record of and shall report to the Contracting Officer (or

authorized representative) in the manner prescribed by the Contracting Officer, all cases of death, occupational diseases, or traumatic injury to employees or the public involved, and property damage in accordance with the RSHS and OSHA guidelines.

(g) If the contractor deems that an updated version of the RSHS constitutes a substantive change to the contract, affecting price or time (or both), the contractor may request a contract modification in accordance with the terms of the contract.

I.38 1452.228-70 Liability Insurance - Department of the Interior

(Jul 1996)

(a) The Contractor shall procure and maintain during the term of this contract and any extension thereof liability insurance in form satisfactory to the Contracting Officer by an insurance company which is acceptable to the Contracting Officer. The named insured parties under the policy shall be the Contractor and the United States of America. The amounts of the insurance shall be not less than as follows:

WORKERS' COMPENSATION AND EMPLOYER'S LIABILITY

\$100,000 minimum coverage

GENERAL LIABILITY

\$500,000 per occurrence

AUTOMOBILE LIABILITY

\$200,000 each person

\$500,000 each occurrence

\$ 20,000 property damage

(b) Each policy shall have a certificate evidencing the insurance coverage. The insurance company shall provide an endorsement to notify the Contracting Officer 30 days prior to the effective date of cancellation or termination of the policy or certificate; or modification of the policy or certificate which may adversely affect the interest of the Government in such insurance. The certificate shall identify the contract number, the name and address of the Contracting Officer, as well as the insured, the policy number and a brief description of contract services to be performed. The contractor shall furnish the Contracting Officer with a copy of an acceptable insurance certificate prior to beginning the work.

FAR 52.223-23 Sustainable Products and Services

(May 2024)((Deviation Feb 2025)

(a) *Definitions.* As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. ([7 U.S.C. 8101](#)) (7 CFR Part 4270.2).

Recovered material means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process. ([42 U.S.C. 6903](#)).

Sustainable products and services

(1) Products containing recovered material designated by the U.S. Environmental Protection Agency (EPA) under the Comprehensive Procurement Guidelines ([42 U.S.C. 6962](#)) ([40 CFR part 247](#))

(<https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products>).

(2) Energy- and water-efficient products that are ENERGY STAR® certified or Federal Energy Management Program (FEMP)-designated products ([42 U.S.C. 8259b](#)) ([10 CFR part 436, subpart C](#))

(<https://www.energy.gov/eere/femp/search-energy-efficient-products> and <https://www.energystar.gov/products?s=mega>).

(3) Biobased products meeting the content requirement of the USDA under the BioPreferred® program ([7 U.S.C. 8102](https://www.biopreferred.gov)) (7 CFR Part 4270) (<https://www.biopreferred.gov>).

(4) Acceptable chemicals, products, and manufacturing processes listed under EPA's Significant New Alternatives Policy (SNAP) program, which ensures a safe and smooth transition away from substances that contribute to the depletion of stratospheric ozone ([42 U.S.C. 76711](https://www.epa.gov/snap)) ([40 CFR part 82, subpart G](https://www.epa.gov/snap)) (<https://www.epa.gov/snap>).

(b) *Requirements.*

(1) The sustainable products and services, including the purchasing program and type of product or service, that are applicable to this contract, and any products or services that are not subject to this clause, will be set forth in the statement of work or elsewhere in the contract.

(2) The Contractor shall ensure that the sustainable products and services required by this contract are—

(i) Delivered to the Government;

(ii) Furnished for use by the Government;

(iii) Incorporated into the construction of a public building or public work; and

(iv) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract (versus costs which are normally applied to the Contractor's general and administrative expenses or indirect costs). This includes services performed by contractors performing management and operation of Government-owned facilities to the same extent that, at the time of award, an agency would be required to comply if an agency operated or supported the facility.

(c) *Resource.* The Green Procurement Compilation (GPC) available at <https://sftool.gov/greenprocurement> provides a comprehensive list of sustainable products and services and sustainable acquisition guidance. The Contractor should review the GPC when determining which purchasing programs apply to a specific product or service.

Attachment 1 - Price Schedule

PRICE SCHEDULE A

CLIN	Task	SUPPLIES OR SERVICES	QUANTITY	UNIT	PRICE IN U.S. DOLLARS
1	1	Large Conference Room - Product Supply, Implementation, and Installation	1	Lump Sum	
2	2	Small Conference Room – Product Supply, Implementation, and Installation	1	Lump Sum	
3	3	Cabling and Infrastructure	1	Lump Sum	
4	4	Implementation Support	1	Lump Sum	
5	5	Testing/Commissioning	1	Lump Sum	
6	6	Training	1	Lump Sum	

Total of Price Schedule A

\$ _____

Invoicing and payment arrangements to occur after completion of all tasks as outlined in the Performance Work Statement and following COR inspection as outlined in the QASP.

Attachment 2 - Performance Work Statement

PERFORMANCE WORK STATEMENT
HUNGRY HORSE AV CABLING AND INFRASTRUCTURE
HUNGRY HORSE DAM AND POWERPLANT

2/5/2025

I. Project

Hungry Horse Audio-Visual (AV) Cabling and Infrastructure Project - Hungry Horse Dam, Grand Coulee Power Office – Columbia-Pacific Northwest (C-PN) Region, U.S. Bureau of Reclamation.

II. Location of Work

Hungry Horse Dam Powerplant is located approximately 20 miles northeast of Kalispell, Montana, and 9 miles southeast of Columbia Falls, Montana, in Flathead County.

III. Purpose, Scope and other Work Features

Purpose

The Hungry Horse Field Office (HHFO) Audio-Visual (AV), network/communications cabling infrastructure, and telephone systems have exceeded its planned useful life and is demonstrating signs of failure. Expansion of the current system is costly, and replacement parts and maintenance are not only becoming more difficult to come by, they also are growing in cost. An upgrade of cabling and the phone system to a unified VoIP (Voice over Internet Protocol) system would provide us with a modern system that can be more easily modifiable; less costly in maintenance (VoIP generally saves users money vs analog competitors); and more capable of providing ease in locating and obtaining replacement parts & related items. This project would also upgrade two HHFO meeting rooms to be VoIP / Collaboration meeting capable for internet conferencing. The purpose of this contract is to obtain the necessary services to provide modernized cabling infrastructure with necessary enclosures, conduit, termination, and AV systems at Hungry Horse Dam.

IV. Scope

The Hungry Horse AV Cabling and Infrastructure Project shall accomplish the following upgrades:

Replace/upgrade/integrate analog devices at the Hungry Horse Field Office (HHFO); modernize two conference rooms to be internet meeting capable; test, coordinate and train for each upgrade.

- a. The Enterprise VoIP team will perform this function in partnership with the Hungry Horse and CPN region staff.

- b. Migrate analog connections to central Main Distribution Frame (MDF)
- c. Maintain the required level of safety and security during installation and final inspection.
- d. Train 10 personnel in the use of the new AV system so they may train HHFO personnel
- e. Upgrade two conference rooms to be internet conference capable and be native MS Teams capable
- f. Install and maintain all required hardware necessary to support all tasks in the Statement of Work
- g. Install and maintain all required software necessary to support all tasks in the Statement of Work
- h. Testing and certifying the new integrated system prior to handing over to HHFO

This scope of work includes supply of the necessary equipment and services to provide and install the following:

REFERENCES: - The following list of documents are required in the performance of this contract:

- 1) Reclamation Safety and Health Standards 2009 Bureau of Reclamation
<http://www.usbr.gov/>

Task 1: Large Conference Room – Product Supply, Implementation, and Installation

- i. Provide and install two (2) 84” LCD displays with associated wall mounts.
- j. Provide and install four (2) digital media receivers behind each LCD display and connect the HDMI output of the receiver to the HDMI input on the respective LCD display.
- k. Provide and install Three (3) tabletop Cable cubbies for HDMI/USB and network interface to the system.
- l. Provide and install One (1) PTZ camera. The camera will be centered between the two displays in the front of the room.
- m. Provide and install one (1) wireless keyboard and mouse at the conference table and extend its signal from the conference table to the equipment rack.
- n. Provide and install two (2) ceiling microphones for use during audio and video conferences.
- o. Provide and install one (1) audio amplifier in the room and eight (8) ceiling speakers for audio reproduction.
- p. Provide and install one (1) 10-inch touch panel in the wall to provide user control of the AV system.

- q. Provide and install one (1) occupancy sensor in the ceiling of each room and connect it to the control system for detection of human activity in the room.
- r. Provide and install a wall mounted digital clock.
- s. Provide and install associated control system and networking components in the equipment rack.
- t. Provide programming services for the Crestron control system in collaboration with the Bureau of Reclamation.
- u. Provide and install one (1) 44-space equipment rack and associated hardware for housing the equipment.
- v. Provide and install one (1) wireless presentation device.
- w. Integrate the GFE computer (Dell Optiplex 7010) into the system. One (1) GFE computer will need to be provided for the room.
- x. Provide and install one (1) thin client PC into the rack.
- y. Provide and install an audio Digital Signal Processor (DSP) in the equipment rack to process the microphone audio, content audio, codec in/out audio and audio to the ceiling speakers in the room.
- z. Provide and install one (1) shared control system processor in the equipment rack for the purpose of controlling the AV functionality in the conference room.
- aa. Provide and install one 8x8 digital media matrix switcher frame, 8 video input cards, and 6 video output cards in the frame.

Task 2: Small Conference Room – Product Supply, Implementation, and Installation

- a. Provide and install two (2) 65” LCD displays with associated wall mounts.
- b. Provide and install four (2) digital media receivers behind each LCD display and connect the HDMI output of the receiver to the HDMI input on the respective LCD display.
- c. Provide and install three (3) tabletop Cable cubbies for HDMI/USB and network interface to the system.
- d. Provide and install one (1) PTZ camera. The camera will be centered between the two displays in the front of the room.
- e. Provide and install one (1) wireless keyboard and mouse at the conference table and extend its signal from the conference table to the equipment rack.
- f. Provide and install one (1) ceiling microphone for use during audio and video conferences.
- g. Provide and install one (1) audio amplifier in the room and six (6) ceiling speakers for audio reproduction.

- h. Provide and install one (1) 10-inch touch panel in the wall to provide user control of the AV system.
- i. Provide and install one (1) occupancy sensor in the ceiling of each room and connect it to the control system for detection of human activity in the room.
- j. Provide and install a wall mounted digital clock.
- k. Provide and install an associated control system and networking components in the equipment rack.
- l. Provide programming services for the Crestron control system in collaboration with the Bureau of Reclamation.
- m. Provide and install one (1) 44-space equipment rack and associated hardware for housing the equipment.
- n. Provide and install one (1) wireless presentation device.
- o. Integrate the GFE computer (Dell Optiplex 7010) into the system. One (1) GFE computer will be provided for the room.
- p. Provide and install one (1) thin client PC into the rack.
- q. Provide and install an audio Digital Signal Processor (DSP) in the equipment rack to process the microphone audio, content audio, codec in/out audio and audio to the ceiling speakers in the room.
- r. Provide and install one (1) shared control system processor in the equipment rack for the purpose of controlling the AV functionality in the conference room.
- s. Provide and install one 8x8 digital media matrix switcher frame, 8 video input cards, and 6 video output cards in the frame.

Task 3: Cabling and Infrastructure

- a. Provide and install a new Main Distribution Frame (MDF) cabinet, including connections to customer supplied Uninterruptible Power Supplies (UPS), if they are required.
- b. Provide and install new Intermediate Distribution Frame (IDF) cabinets per locations noted on the drawings for 16 new IDF enclosures to house the necessary switches along with contractor installed patch panels, wire management, power strips, and government supplied UPS's.
- c. Provide and install a Replacement Interior Fiber Backbone. New fiber optic cable shall be installed to all IDF's with Corning SM 6 Strand or 12-strand Plenum Armored with the appropriate rating for the environment. Terminations shall be Corning Fusion Splice Cassettes with LC Pigtails and

placed in Corning LIU boxes.

- d. Provide and install Replacement Exterior Fiber Backbone. New fiber optic cable shall be installed to all IDF's with Corning SM 6 Strand or 12-strand Plenum Armored with the appropriate rating for the environment. Terminations shall be CommScope Fusion Splice Cassettes with LC Pigtails and placed in CommScope LIU boxes. Splices will be done with fusion splicing into CommScope Fusion Splice trays.
- e. Provide and install Replacement Interior Copper Cable. Install new Cat 6 cables to each location indicated on the drawings - 286 Cables, of which 41 are WAP locations - to the nearest MDF / IDF and terminate in rack mounted 24 or 48 port flat loaded patch panels. The elevator phones, the emergency phones in the roadway gallery, and the intercom at the gate shall stay analog to be integrated with analog ports on the phone system.
- f. Install cabling and terminations for government-furnished Campus Wireless networking of 41 Wireless Access Points (WAP). USBR to provide the WAP and all required mounting materials. WAP's shall be installed by Contractor and be fully integrated into the AV system.
- g. The contractor shall remove existing phone and data cabling for the existing systems being replaced in this task order and disposal of debris from conduit work.

Task 4: Implementation Support

- a. The contractor shall provide Engineering Support during Implementation/Installation of the previous three tasks to ensure that all systems are installed accordingly to the Design Specifications and Drawings. This work includes review and approval of submittals, responding to Requests for Information (RFI), review of proposal requests (PR) and Change Orders Proposals (COP), and markup of design drawings during installation to reflect as-built conditions throughout the duration of the implementation and installation.

Task 5: Testing/Commissioning

- a. The contractor shall develop a testing and commissioning plan to verify functionality of new the new AV systems and supporting cabling of all required tasks. The contractor shall perform fiber optic testing to include OTDR performance results meeting TIA-568.3-D standards, and the project completion will depend on the acceptance of these results. All fiber strands shall be tested from both ends. Any test that reveals the materials or equipment is damaged or does not meet the stated specifications shall constitute failure and shall be replaced at the Contractor's expense.
- b. The contractor shall submit a Testing and Commissioning Plan for

acceptance and comment by the Government, prepare and submit written response to Government comments.

- c. The contractor shall test and commission the fielding of the AV system according to the Testing and Commissioning Plan.
- d. The contractor shall submit results for review and comment by the Government, prepare and submit written responses to Government comments, as required.
- e. The contractor shall prepare as-built revisions to drawings and related system documentation and submit to the Government for approval.

Task 6: Training

- a. The contractor shall develop a Training Plan to train up to 10 Reclamation personnel on the operation and the maintenance of the newly integrated AV system.
- b. The contractor shall submit the Training Plan for review and comment by the Government, prepare and submit written responses to Government comments, as required.
- c. The contractor shall train site personnel according to Training Plan.

V. Other Work Features:

a. SAFETY PROGRAM

The contractor shall submit a comprehensive, job-specific safety and health program in accordance with the requirements the Reclamation Safety and Health Standards (RSHS).

The Safety Program will not be accepted for review by the COR unless it addresses, in order, lettered and numbered per the RSHS, a comprehensive narrative for each applicable item in the outline and program elements contained in these requirements.

Generic company safety programs are not acceptable. The Safety Program must be site specific for this contract.

The Contractor's Safety Program must be submitted and accepted by Reclamation prior to commencing onsite work, including mobilization.

The Safety Program Statement of Responsibility must state that "the contractor is responsible for ensuring that all work will be in compliance with Reclamation Safety and Health Standards and these specifications."

b. SAFETY AND HEALTH

1. The contractor shall comply with RSHS, local safety programs, and any other referenced safety and health standards. Perform work in accordance with the specific safety program elements and referenced standards.
2. The contractor shall provide and maintain a work environment and procedures that will:
Safeguard the public, Government personnel, and Contractor employees from Contractor operations and activities that are unsanitary, hazardous, or dangerous to health and safety.
3. The serving area is accessible by, and open to the public. Areas where contractor is actively working can be temporarily closed. It is the contractor's responsibility for signage and coordinating closure needs with COR.

Any location the government determines as a "do not disturb" area will be clearly mark or identified. Any needed signage for this type of area will be managed and maintained by the government.

4. For each operation requiring the use of heavy equipment, in addition to the use of backup alarms and high visibility vests, include in the Job Hazard Analysis specific steps to ensure the protection of onsite personnel (internal traffic control) from the hazards of being struck by or caught between moving equipment while working around such equipment. Possible methods of controlling said hazards may include radio communications, backup cameras and/or proximity devices, designated observers, etc.
Provide all appropriate safety barricades, signs, and warnings.
5. Comply specifically with all requirements contained in RSHS that are applicable to Contractor Requirements.
6. Investigate and report all accidents, incidents and near misses in accordance with RSHS.
7. When the Contractor fails or refuses to promptly correct a compliance directive, the Contracting Officer (CO) may issue an order to stop all or any part of the work.

When satisfactory corrective action is taken, an order to resume work will be issued.

The Contractor shall not be entitled to extension of time or to claim for damage or to additional compensation by reason of either the directive or the stop order. Failure of the CO to order discontinuance of any or all of the Contractor's operations shall not relieve the Contractor of the responsibility for the safety of personnel and property.

8. Disputes regarding safety and health issues will be settled in accordance with

RSHS.

9. The Contractor shall be responsible for providing medical and emergency assistance in a timely manner that is consistent with recognized emergency protocols. In instances where local emergency responders are not readily available, the responsibility to provide emergency services shall default back to the Contractor.
10. The Contractor shall be responsible for ensuring that Subcontractors comply with the requirements set forth in this specification, written programs, the regulatory standards and the industry standards incorporated by reference in the RSHS and OSHA standards.
11. Where there is conflict between the standards, the more stringent or restrictive shall be utilized.
12. The Contractor shall fully participate in the Contractor Safety Program Review meeting, according to RSHS. The Contractor Safety Program Review meeting will take place before the start of on-site activities.
Include subcontractor management representatives.
The Safety Personnel shall be present, in order to discuss in detail, the Safety Program and Plans. The COR, the Contractor's principal onsite representative, and designated members of respective staffs must participate in the Price Scheduled monthly safety meeting (JPSM) according to RSHS.
13. The minimum work crew at any time on the on- site shall consist of no less than two (2) people.

c. ONSITE SAFETY REPRESENTATIVE

1. Designate an employee as the Contractor's Onsite Safety Representative prior to start of on-site activities.
2. Contractor's Onsite Safety Representative authorities, duties, and responsibilities:
Review and approve the Contractor's Safety Program prior to submittal.
Responsible for effectively implementing the Contractor's Safety Program.
Full authorization to correct unsafe acts on the spot.
Prepare safety inspection reports.
Onsite during work activities.

d. QUALITY ASSURANCE

1. Contractor's Onsite Safety Representative:
 - a. The effectiveness of the Contractor's Onsite Safety Representative in prosecuting the safety program will be subject to continued review and approval by the COR.
 - b. Should the Contractor's safety effort be considered inadequate by the COR, the CO has the option to require the Contractor to employ a qualified Safety

Professional.

3. Safety Program:

a. The effectiveness of the Contractor's Safety Program will be subject to continued review and approval by the COR.

e. PERFORMANCE REQUIREMENTS SUMMARY

<u>Requirement</u>	<u>Task</u>	<u>Performance Metric</u>	<u>Performance Standard</u>	<u>Minimum acceptable quality</u>
1 - Site Preparation	1, 2, 3	Task: Ensure that all installation sites are prepared according to the specifications outlined in the contract.	Sites are clean, free of obstructions, and meet all physical and environmental requirements before installation begins.	Sites must be cleared of any obstructions and debris. All necessary power and network connections must be in place and tested before installation begins.
2 - Equipment Installation	1, 2, 3	Install AV equipment according to the manufacturer's guidelines and project specifications.	Equipment is installed correctly, securely, and in the designated locations. All connections are properly made and labeled.	Equipment must be installed according to the manufacturer's guidelines and project specifications. All equipment should be securely mounted and properly aligned. Cables must be neatly organized and labeled, with no visible damage or loose connections.
3 - System Configuration	1, 2, 3	Configure AV systems to meet the specified performance criteria.	Systems are configured to deliver optimal performance, including audio clarity, video quality, and system responsiveness.	Systems must be configured to deliver optimal performance, including clear audio, high-quality video, and responsive controls. Configuration settings should be documented and saved for future reference. Any custom settings or adjustments must be approved by the project manager.
4 - Testing and Calibration	5	Conduct thorough testing and calibration of all installed AV equipment.	All systems pass functional tests and meet the required performance standards. Calibration is documented and verified.	All systems must pass functional tests, including audio clarity, video quality, and system responsiveness. Calibration must be performed using industry-standard tools and techniques. Test results should be documented, and any issues must be resolved before proceeding.

5 - Documentation and Training	4, 6	Task: Provide comprehensive documentation and training to end-users.	Documentation is complete, accurate, and user-friendly. Training sessions are conducted, and users demonstrate understanding of system operation.	Documentation must be comprehensive, accurate, and user-friendly, covering all aspects of system operation and maintenance. Training sessions should be conducted for up to 10 Reclamation employees as designated by the COR, with hands-on demonstrations and Q&A sessions. Users must demonstrate a clear understanding of system operation before training is considered complete.
6 - Quality Control Inspections	1, 2, 3, 4, 5	Perform regular quality control inspections throughout the installation process.	Inspections are conducted at specified intervals, and any issues are promptly addressed and resolved.	Inspections must be conducted at specified intervals, such as after site preparation, equipment installation, and system configuration. Any issues identified during inspections must be documented and addressed promptly. A final inspection must be conducted before project sign-off to ensure all standards are met.
7 - Final Acceptance and Testing	1, 2, 3, 5	Conduct final acceptance testing to ensure all systems meet the contract requirements.	All systems pass final acceptance tests, and any deficiencies are corrected before project sign-off.	All systems must pass final acceptance tests, including functional and performance tests. Any deficiencies identified during testing must be corrected before project sign-off. Final acceptance must be documented, with sign-off from the COR and approval by the Contracting Officer.

f. DELIVERABLES – The contractor shall provide the following data and reports as follows

prior to initiation of any on-site activities:

<u>Item No.</u>	<u>Description</u>	<u>Content</u>
1 - Liability Insurance (52.228-5 and 1452.228-70)	Acceptable Certificate of Liability Insurance	1 Electronic Copy to the CO for approval prior to commencing work
2 - Safety Program (1452.223-81)	Written safety plan compliant with Reclamation Safety and Health Standards	1 Electronic Copy to the COR for approval prior to commencing work
3 - Final Delivery	Provide Certificate of Completion and Detailed List of Installed Equipment, with part numbers.	1 Electronic Copy to the COR for approval prior to project sign-off.

VI. General Provisions

A. Standards: The following standards shall be met.

- 1) Departmental Manual 377DM (Telecommunications Management)
- 2) Reclamation's Enterprise Telecommunications Management Installation/Programming Configuration Standards
- 3) TIA 568 Standard For Fiber Optics
- 4) NFPA 70, National Electrical Code (NEC)
- 5) Bureau of Reclamation FIST 5-14

B. Submittals:

- 1) RSN

VII. Special Provisions

A. Information requests

The contractor shall answer information requests as requested by the Contracting Officer's Representative.

B. Security Requirements

Certain aspects of the project will require that some of the awarded Contractor's employees have a National Agency Check (NAC) security clearance, which will be provided by the Government. The Contractor's employees whose work requires the NAC will be required to complete a variety of forms for the NAC.

C. Safety Requirements

The contractor shall prepare a written safety plan in accordance with WBR 1452.228-81 and submit it to the COR for approval prior to commencing work on-site. The contractor shall wear appropriate PPE for the work being done, follow lock-out & tag-out procedures, follow facility emergency action

plans (evacuation, muster areas, personnel accountability), use of personal fall protection equipment, use of warning signs while doing overhead inspections, and general electrical safety. As part of the safety plan submittal, the contractor shall prepare and use a Job Hazard Analysis (JHA) (or an equivalent process), as well as submit requests for access, so that Special Work Permits (SWPs) can be provided.

D. Drawing Security

The government shall have unlimited rights to all drawings provided to the contractor and produced by the contractor as part of this project. All drawings, or copies of drawings, shall not to be distributed by the contractor to any other entities without prior written approval by the Contracting Officer.

E. Government-furnished Materials

Item Name	Part No.	Quantity
Cisco Catalyst Wireless 9166I Series Wi-Fi 6E Access Point	Cisco CW9166i	41

VIII. Schedule

Task	Duration (Calendar Days) Due
Task 1: Large Conference Room	244 Days from Contract Award
Task 2: Small Conference Room	244 Days from Contract Award
Task 3: Cabling and Infrastructure	244 Days from Contract Award
Task 4: Implementation Support	244 Days from Contract Award
Task 5: Testing/Commissioning	244 Days from Contract Award
Task 6: Training	244 Days from Contract Award

IX. Contacts

- a. The Contracting Officer's Representative (COR) is Colton Foster, cjfoster@usbr.gov, Bureau of Reclamation.
- b. The Technical Lead is Greg West, gwest@usbr.gov, Bureau of Reclamation.
- c. The Contracting Officer (CO) is Mitchell Frost mfrost@usbr.gov, Bureau of Reclamation.
- d. The Project Manager is DJ Zor, dzor@usbr.gov, Bureau of Reclamation.

Attachment 3 - Quality Assurance Surveillance Plan

QUALITY ASSURANCE SURVEILLANCE PLAN (QASP)

SOLICITATION NO.: 140R6025R0020

CONTRACTOR: TBD

CONTRACTING OFFICER: Mitchell Frost

INSPECTOR(S): U.S. Bureau of Reclamation Construction Group

Performance Requirement	Standard	Acceptable Quality Level (AQL)	Surveillance Method	Result if AQL not met
Service (PWS Tasks 1-6)	Perform all work required in a satisfactory manner in accordance with the appropriate PWS paragraph.	100%	File reviews, periodic inspections, and random, observations. Frequency = Monthly	Negative CPARS ² Input.
Commissioning and Testing of Network Cabling and Fiber Optic	All network cabling and fiber optic testing is complete and meets the standards described in the PWS and the contractor's Testing and Commissioning Plan.	100%	To include OTDR performance results meeting TIA-568.3-D standards	Negative CPARS ² Input. Non-Acceptance of Services or Supplies (Project Completion is dependent upon acceptance of these results)
Commissioning and Testing of Fiber of AV Systems	All AV systems are installed, fully integrated, and meet the standards described in the PWS and the contractor's Testing and Commissioning Plan.	100%	Per the government-approved Testing and Commissioning Plan.	Negative CPARS ² Input. Non-Acceptance of Services or Supplies (Project Completion is dependent upon acceptance of these results)

Attachment 4 - Drawings

D

C

B

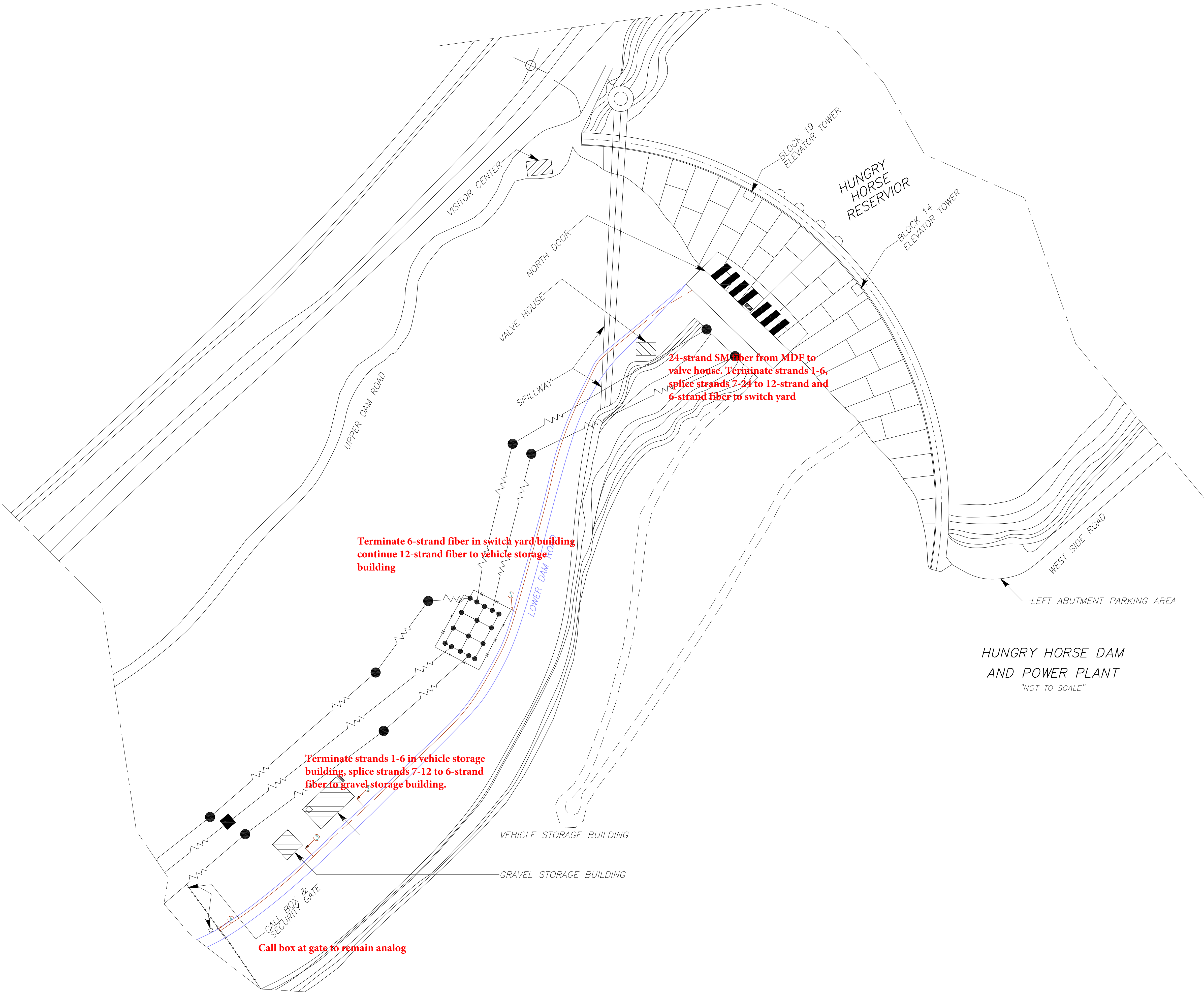
A

D

C

B

A



NOTES

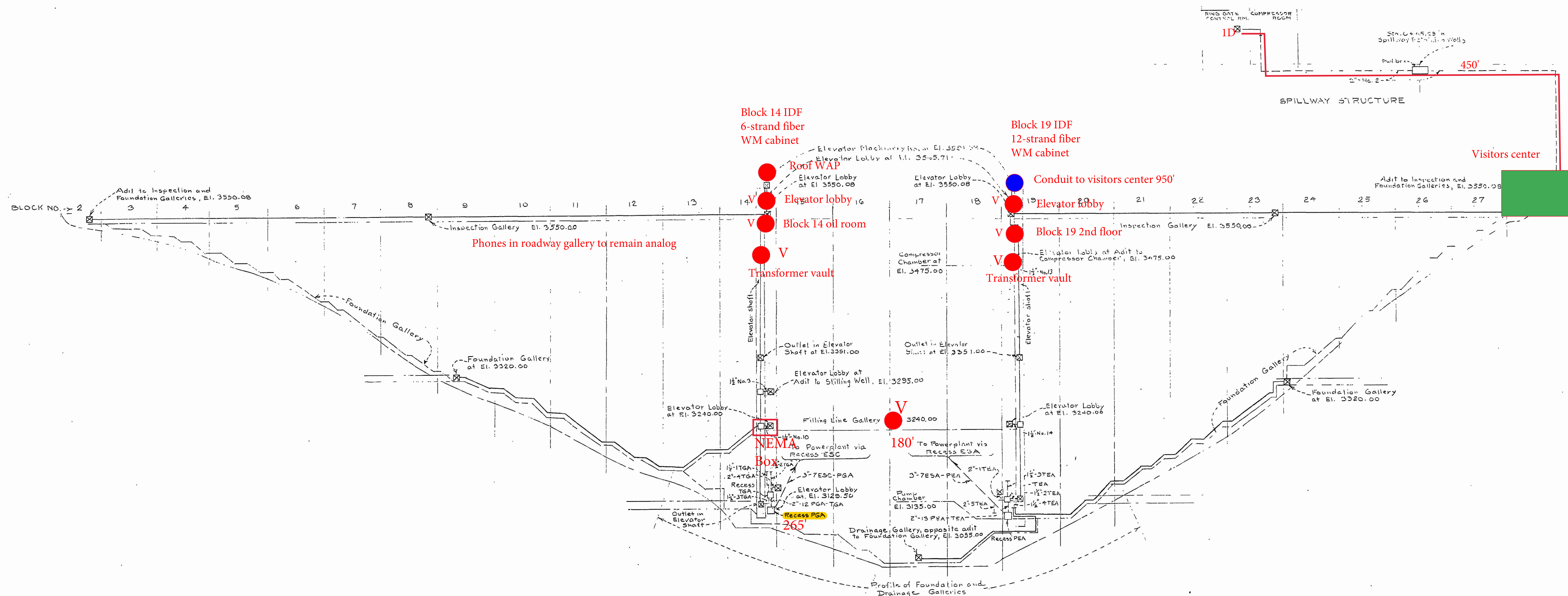
PATH TAKEN TO MEASURE DISTANCE SHOWN BY:

DISTANCE FROM FRONT DOOR TO:

- 1 SWITCHYARD BUILDING: 1,266 FEET
- 2 VEHICLE STORAGE BUILDING: 2066 FEET
- 3 GRAVEL STORAGE BUILDING: 2268 FEET
- 4 FRONT GATE: 2665 FEET

THIS DRAWING HAS BEEN MODIFIED FOR THE TELEPHONE PROJECT INFORMATIONAL USE ONLY

REV NO	2020-07-30	UPDATE FOR SPCC WOF 4634078		J.A.W.
0.3				
REV NO	7-28-06	ADDED MAIN POWER PLANT TRANSFORMERS		J.A.W.
1	709	R.J.C.		
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⊕ ALWAYS THINK SAFETY				
UNITED STATES DEPARTMENT OF THE INTERIOR BUREAU OF RECLAMATION COLUMBIA BASIN PROJECT - WASHINGTON HUNGRY HORSE FIELD OFFICE HUNGRY HORSE DAM UNIVERSAL WASTE & OIL STORAGE LOCATION DAM SECURED OUTDOOR AREA SCALED ARCHITECTURAL				
DESIGNED	-----		CHECKED	L.F.SALDAMANDO
DRAWN	J.A.WADDELL	TECH. APPR.	R.J.CARTER	
APPROVED				
PEER REVIEWER				
CAD SYSTEM: Acad 2008		CAD FILENAME:		
HUNGRY HORSE, MONTANA		APRIL 20, 2005		
SHEET 1 OF 1		447-105-4109		



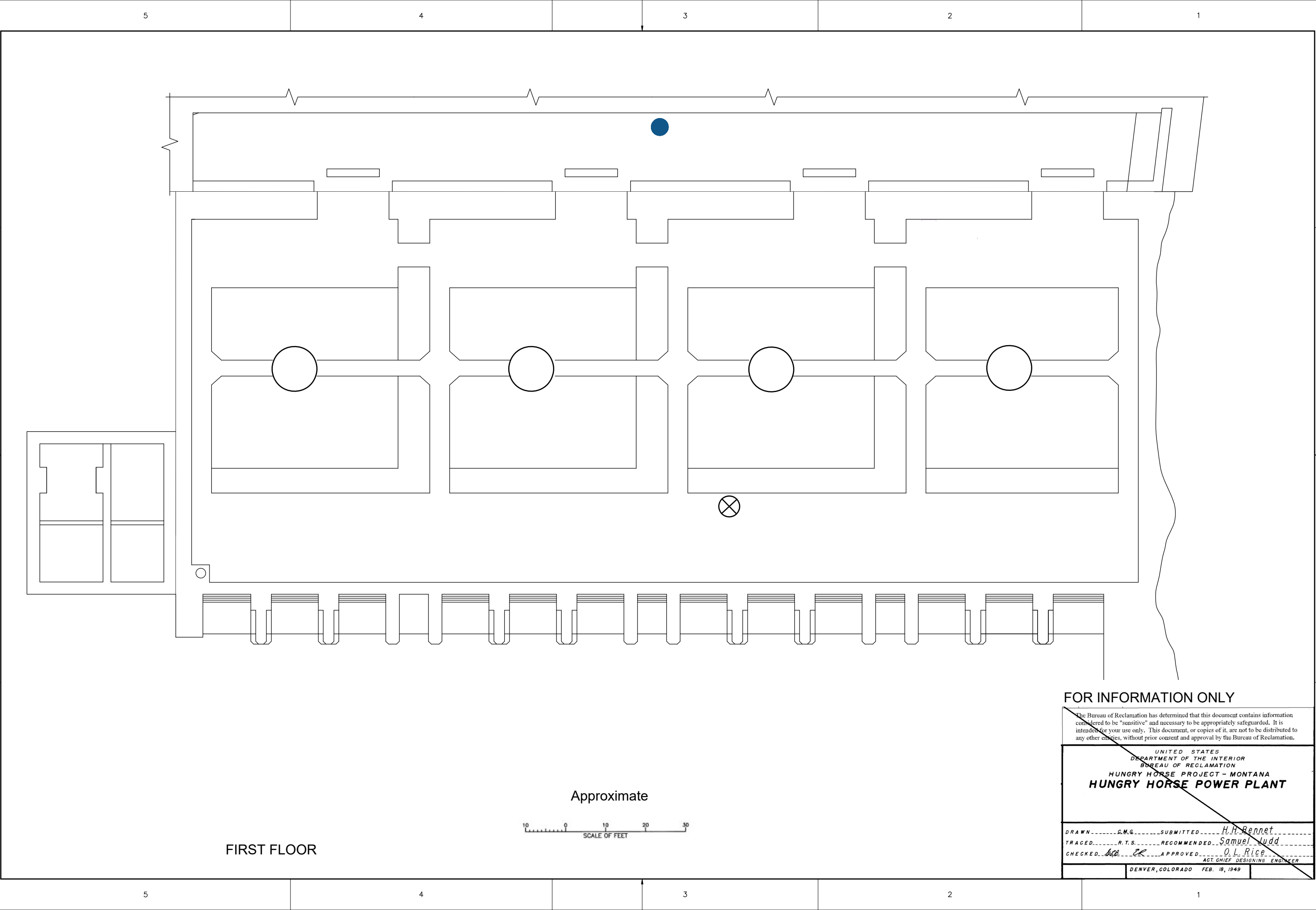
EXPLANATION

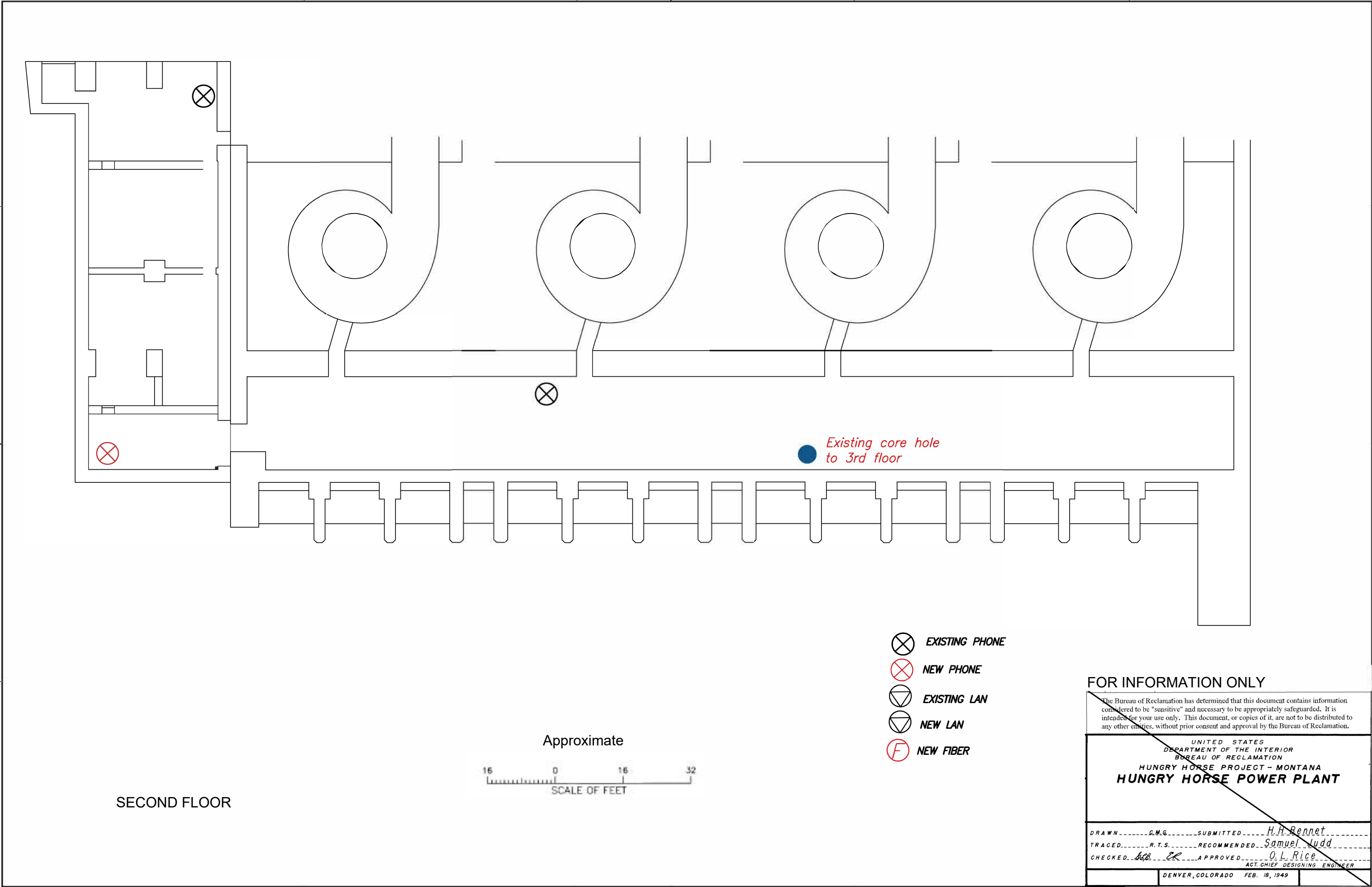
- ☒ Telephone or telephone outlet location
- Exposed lead-covered telephone cable, or one or more weatherproof twisted-pair telephone lines
- - - Telephone cable or weatherproof twisted pairs carried in 1 1/2" embedded or exposed conduit.

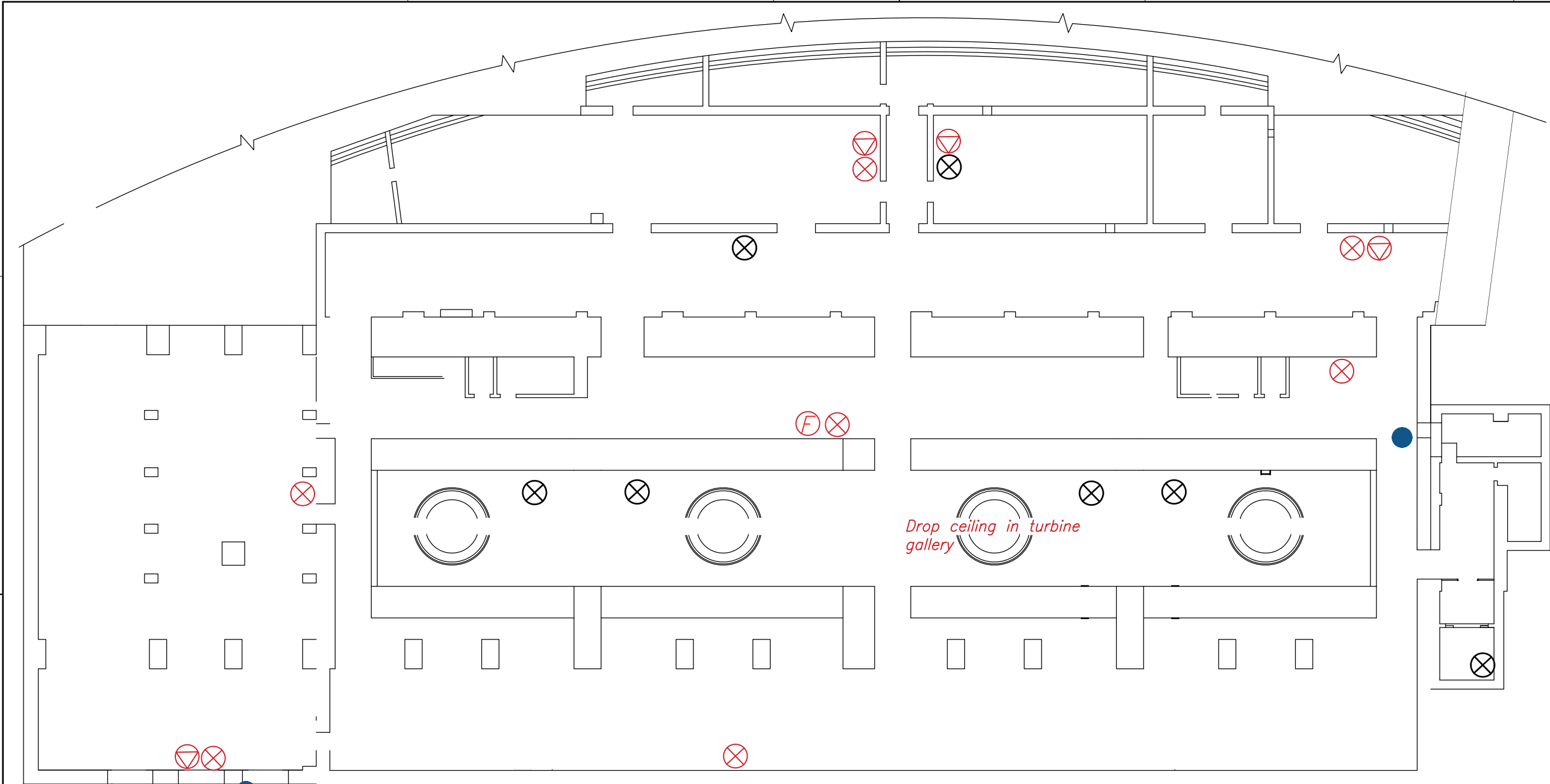
FOR INFORMATION ONLY

UNITED STATES
DEPARTMENT OF THE INTERIOR
BUREAU OF RECLAMATION
HUNGRY HORSE PROJECT - MONTANA
HUNGRY HORSE DAM
COMMUNICATIONS SYSTEM
TELEPHONE SINGLE-LINE DIAGRAM

REV. 2/8/51
DRAWN: TLB
TRACED
CHECKED: ctm
SUBMITTED: [Signature]
RECOMMENDED: [Signature]
APPROVED: [Signature]
CHIEF DES. ENGR.
DENVER, COLO. AUG. 23, 1951 447-D-415







- EXISTING PHONE
- NEW PHONE
- EXISTING LAN
- NEW LAN
- NEW FIBER

OSP conduits

Drop ceiling in turbine gallery

FOR INFORMATION ONLY

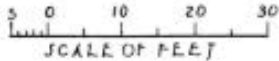
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BUREAU OF RECLAMATION
HUNGRY HORSE PROJECT - MONTANA
HUNGRY HORSE POWER PLANT

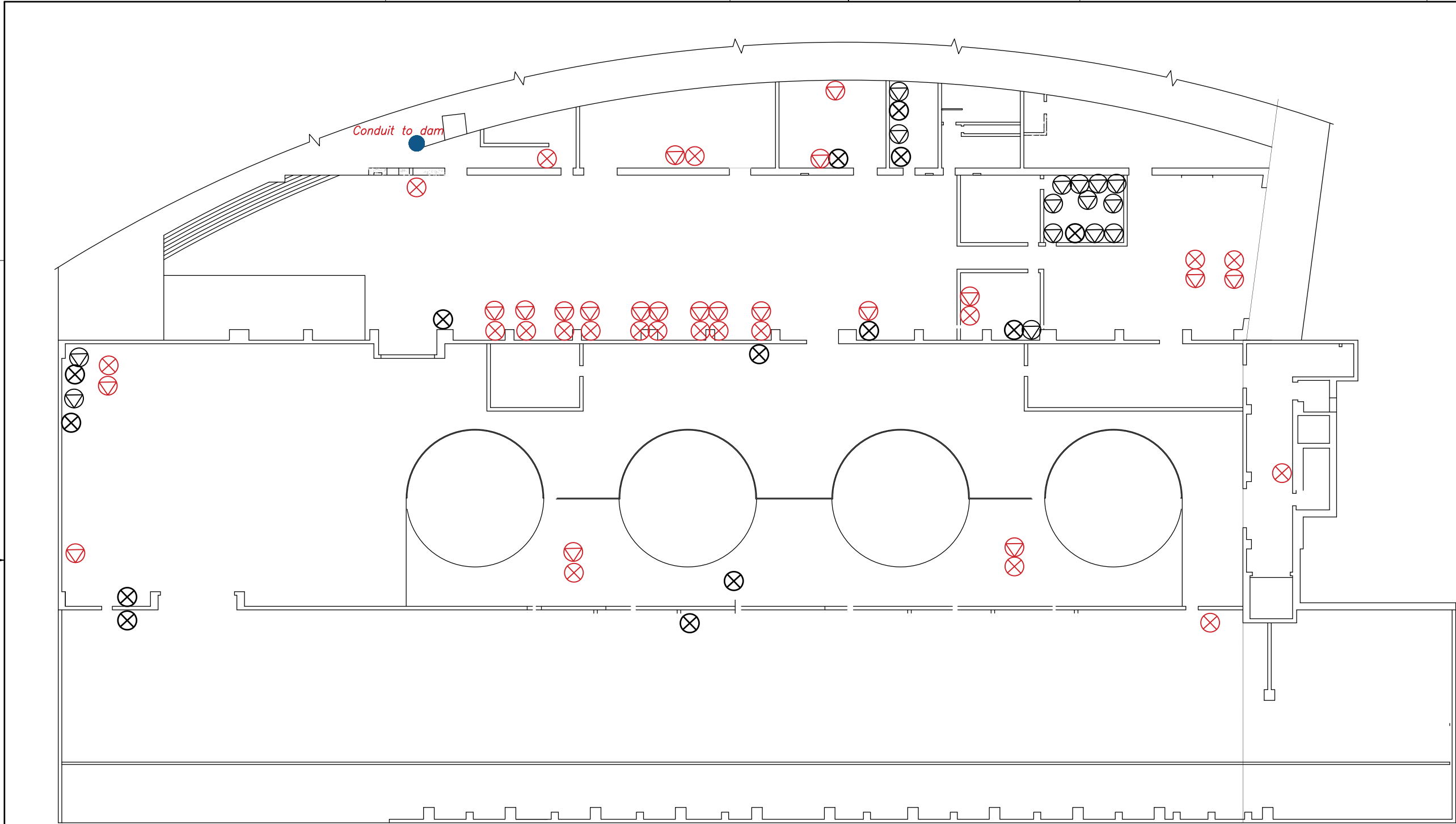
DRAWN G.M.G. SUBMITTED *H.H. Bennet*
TRACED R.T.S. RECOMMENDED *Samuel Ludd*
CHECKED *W.B. OR* APPROVED *O.L. Rice*
ACT. CHIEF DESIGNING ENGINEER

DENVER, COLORADO FEB. 18, 1949

Approximate



THIRD FLOOR



- ⊗ EXISTING PHONE
- ⊗ NEW PHONE
- ⊗ EXISTING LAN
- ⊗ NEW LAN
- ⊗ NEW FIBER

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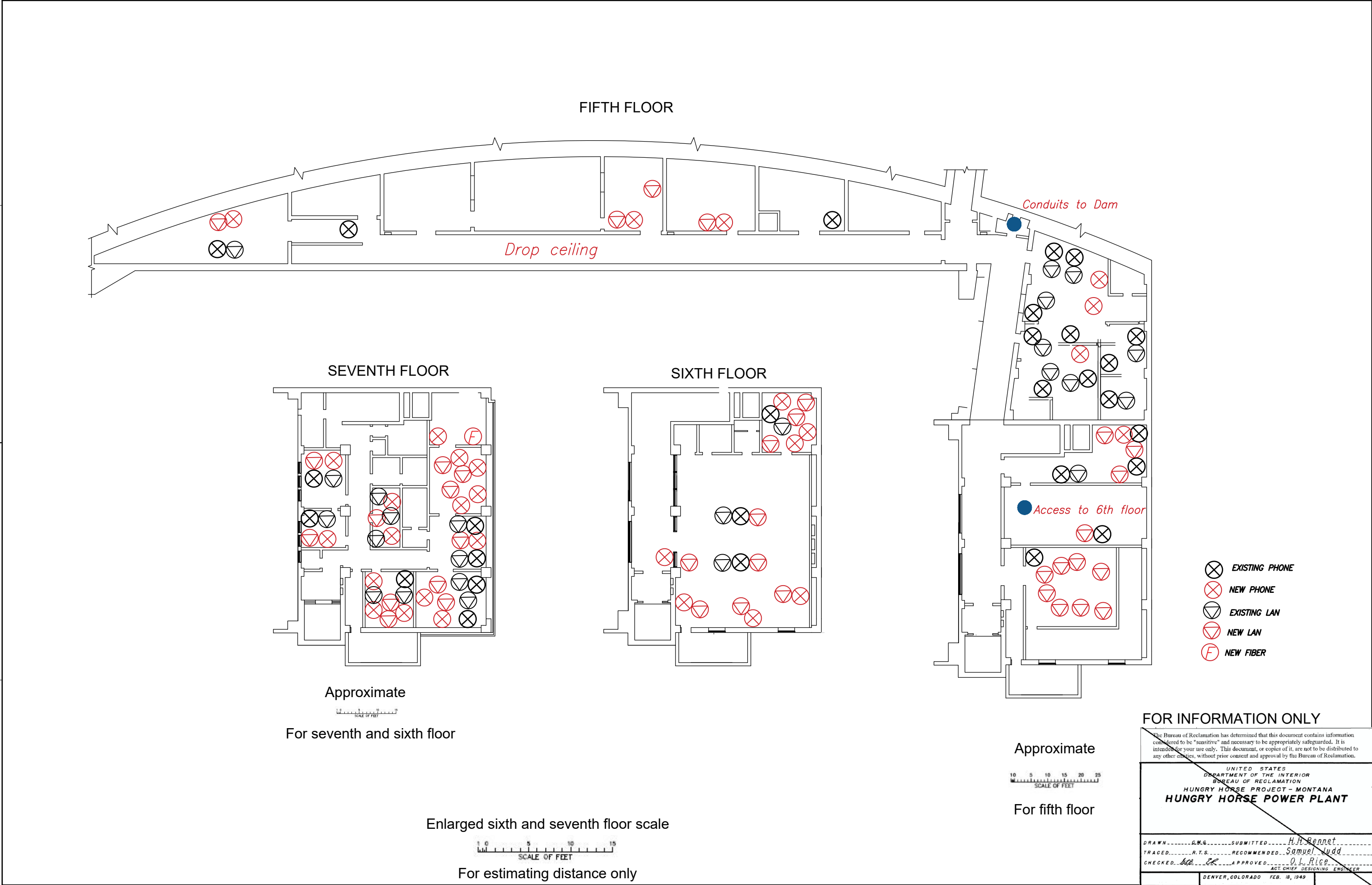
UNITED STATES DEPARTMENT OF THE INTERIOR BUREAU OF RECLAMATION HUNGRY HORSE PROJECT - MONTANA HUNGRY HORSE POWER PLANT	
DRAWN.....G.M.G.	SUBMITTED..... <i>H. H. Bennet</i>
TRACED.....R.T.S.	RECOMMENDED..... <i>Samuel Ludd</i>
CHECKED..... <i>CL</i>	APPROVED..... <i>O. L. Rice</i> AGT. CHIEF DESIGNING ENGINEER
DENVER, COLORADO FEB. 18, 1949	

FOURTH FLOOR

Approximate



Scale of feet



FIFTH FLOOR

SEVENTH FLOOR

SIXTH FLOOR

Conduits to Dam

Drop ceiling

Access to 6th floor

- ⊗ EXISTING PHONE
- ⊗ NEW PHONE
- ⊖ EXISTING LAN
- ⊖ NEW LAN
- Ⓡ NEW FIBER

Approximate
For seventh and sixth floor

Approximate
For fifth floor

Enlarged sixth and seventh floor scale
For estimating distance only

FOR INFORMATION ONLY

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UNITED STATES			
DEPARTMENT OF THE INTERIOR			
BUREAU OF RECLAMATION			
HUNGRY HORSE PROJECT - MONTANA			
HUNGRY HORSE POWER PLANT			
DRAWN.....	G.M.G.	SUBMITTED.....	H.H. Bennet
TRACED.....	R.T.S.	RECOMMENDED.....	Samuel Judd
CHECKED.....	CL	APPROVED.....	O.L. Rice
		ACT. CHIEF DESIGNING ENGINEER	
DENVER, COLORADO		FEB. 18, 1949	

Attachment 5 - Wage Determination

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor		U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director	Division of Wage Determinations	Wage Determination No.: 2015-5401 Revision No.: 27 Date Of Last Revision: 12/03/2025

State: Montana

Area: Montana Counties of Flathead, Lake, Lincoln, Ravalli, Sanders

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		17.45
01012 - Accounting Clerk II		19.59
01013 - Accounting Clerk III		21.91
01020 - Administrative Assistant		28.87
01035 - Court Reporter		21.52
01041 - Customer Service Representative I		16.23
01042 - Customer Service Representative II		17.70
01043 - Customer Service Representative III		19.87
01051 - Data Entry Operator I		16.97
01052 - Data Entry Operator II		18.52
01060 - Dispatcher, Motor Vehicle		20.61
01070 - Document Preparation Clerk		17.14
01090 - Duplicating Machine Operator		17.14
01111 - General Clerk I		17.15
01112 - General Clerk II		18.72
01113 - General Clerk III		21.01
01120 - Housing Referral Assistant		23.98
01141 - Messenger Courier		13.96
01191 - Order Clerk I		15.71
01192 - Order Clerk II		17.14
01261 - Personnel Assistant (Employment) I		19.24
01262 - Personnel Assistant (Employment) II		21.52
01263 - Personnel Assistant (Employment) III		23.98
01270 - Production Control Clerk		25.07
01290 - Rental Clerk		18.85
01300 - Scheduler, Maintenance		19.24
01311 - Secretary I		19.24
01312 - Secretary II		21.52
01313 - Secretary III		23.98
01320 - Service Order Dispatcher		18.43
01410 - Supply Technician		28.87
01420 - Survey Worker		19.43
01460 - Switchboard Operator/Receptionist		17.13
01531 - Travel Clerk I		17.71
01532 - Travel Clerk II		19.88
01533 - Travel Clerk III		22.22
01611 - Word Processor I		17.14
01612 - Word Processor II		19.24
01613 - Word Processor III		21.52
05000 - Automotive Service Occupations		
05005 - Automobile Body Repairer, Fiberglass		23.59
05010 - Automotive Electrician		23.98

05040 - Automotive Glass Installer	22.33
05070 - Automotive Worker	22.33
05110 - Mobile Equipment Servicer	19.33
05130 - Motor Equipment Metal Mechanic	25.60
05160 - Motor Equipment Metal Worker	22.33
05190 - Motor Vehicle Mechanic	25.60
05220 - Motor Vehicle Mechanic Helper	17.78
05250 - Motor Vehicle Upholstery Worker	20.83
05280 - Motor Vehicle Wrecker	22.33
05310 - Painter, Automotive	23.98
05340 - Radiator Repair Specialist	22.33
05370 - Tire Repairer	19.82
05400 - Transmission Repair Specialist	25.60
07000 - Food Preparation And Service Occupations	
07010 - Baker	17.00
07041 - Cook I	17.47
07042 - Cook II	20.19
07070 - Dishwasher	13.45
07130 - Food Service Worker	14.59
07210 - Meat Cutter	18.35
07260 - Waiter/Waitress	10.81
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	22.54
09040 - Furniture Handler	13.89
09080 - Furniture Refinisher	22.54
09090 - Furniture Refinisher Helper	16.82
09110 - Furniture Repairer, Minor	19.58
09130 - Upholsterer	22.54
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	16.85
11060 - Elevator Operator	17.47
11090 - Gardener	24.71
11122 - Housekeeping Aide	17.47
11150 - Janitor	17.47
11210 - Laborer, Grounds Maintenance	18.77
11240 - Maid or Houseman	16.35
11260 - Pruner	16.59
11270 - Tractor Operator	22.73
11330 - Trail Maintenance Worker	18.77
11360 - Window Cleaner	19.77
12000 - Health Occupations	
12010 - Ambulance Driver	16.63
12011 - Breath Alcohol Technician	26.20
12012 - Certified Occupational Therapist Assistant	35.94
12015 - Certified Physical Therapist Assistant	30.39
12020 - Dental Assistant	21.21
12025 - Dental Hygienist	45.09
12030 - EKG Technician	39.69
12035 - Electroneurodiagnostic Technologist	39.69
12040 - Emergency Medical Technician	16.63
12071 - Licensed Practical Nurse I	23.42
12072 - Licensed Practical Nurse II	26.20
12073 - Licensed Practical Nurse III	29.20
12100 - Medical Assistant	22.62
12130 - Medical Laboratory Technician	33.90
12160 - Medical Record Clerk	21.75
12190 - Medical Record Technician	24.33
12195 - Medical Transcriptionist	23.38
12210 - Nuclear Medicine Technologist	57.57
12221 - Nursing Assistant I	13.34
12222 - Nursing Assistant II	15.01
12223 - Nursing Assistant III	16.38
12224 - Nursing Assistant IV	18.39
12235 - Optical Dispenser	19.91
12236 - Optical Technician	23.42

12250 - Pharmacy Technician	21.98
12280 - Phlebotomist	21.26
12305 - Radiologic Technologist	35.19
12311 - Registered Nurse I	26.09
12312 - Registered Nurse II	31.91
12313 - Registered Nurse II, Specialist	31.91
12314 - Registered Nurse III	38.61
12315 - Registered Nurse III, Anesthetist	38.61
12316 - Registered Nurse IV	46.29
12317 - Scheduler (Drug and Alcohol Testing)	32.45
12320 - Substance Abuse Treatment Counselor	27.30
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	21.94
13012 - Exhibits Specialist II	27.18
13013 - Exhibits Specialist III	33.25
13041 - Illustrator I	21.94
13042 - Illustrator II	27.18
13043 - Illustrator III	33.25
13047 - Librarian	30.10
13050 - Library Aide/Clerk	17.48
13054 - Library Information Technology Systems Administrator	27.18
13058 - Library Technician	18.48
13061 - Media Specialist I	19.61
13062 - Media Specialist II	21.94
13063 - Media Specialist III	24.46
13071 - Photographer I	18.74
13072 - Photographer II	20.96
13073 - Photographer III	25.96
13074 - Photographer IV	31.75
13075 - Photographer V	38.41
13090 - Technical Order Library Clerk	21.94
13110 - Video Teleconference Technician	20.80
14000 - Information Technology Occupations	
14041 - Computer Operator I	18.52
14042 - Computer Operator II	20.72
14043 - Computer Operator III	23.09
14044 - Computer Operator IV	25.66
14045 - Computer Operator V	28.42
14071 - Computer Programmer I	(see 1) 25.40
14072 - Computer Programmer II	(see 1)
14073 - Computer Programmer III	(see 1)
14074 - Computer Programmer IV	(see 1)
14101 - Computer Systems Analyst I	(see 1)
14102 - Computer Systems Analyst II	(see 1)
14103 - Computer Systems Analyst III	(see 1)
14150 - Peripheral Equipment Operator	18.52
14160 - Personal Computer Support Technician	25.66
14170 - System Support Specialist	29.92
15000 - Instructional Occupations	
15010 - Aircrew Training Devices Instructor (Non-Rated)	34.22
15020 - Aircrew Training Devices Instructor (Rated)	41.40
15030 - Air Crew Training Devices Instructor (Pilot)	49.62
15050 - Computer Based Training Specialist / Instructor	34.22
15060 - Educational Technologist	30.57
15070 - Flight Instructor (Pilot)	49.62
15080 - Graphic Artist	24.70
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	49.62
15086 - Maintenance Test Pilot, Rotary Wing	49.62
15088 - Non-Maintenance Test/Co-Pilot	49.62
15090 - Technical Instructor	29.25
15095 - Technical Instructor/Course Developer	35.78
15110 - Test Proctor	23.62
15120 - Tutor	23.62
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations	

16010 - Assembler	11.99
16030 - Counter Attendant	11.99
16040 - Dry Cleaner	13.71
16070 - Finisher, Flatwork, Machine	11.99
16090 - Presser, Hand	11.99
16110 - Presser, Machine, Drycleaning	11.99
16130 - Presser, Machine, Shirts	11.99
16160 - Presser, Machine, Wearing Apparel, Laundry	11.99
16190 - Sewing Machine Operator	14.37
16220 - Tailor	15.31
16250 - Washer, Machine	12.56
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	27.62
19040 - Tool And Die Maker	34.20
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	23.60
21030 - Material Coordinator	25.07
21040 - Material Expediter	25.07
21050 - Material Handling Laborer	19.81
21071 - Order Filler	18.95
21080 - Production Line Worker (Food Processing)	23.60
21110 - Shipping Packer	19.15
21130 - Shipping/Receiving Clerk	19.15
21140 - Store Worker I	14.76
21150 - Stock Clerk	21.00
21210 - Tools And Parts Attendant	23.60
21410 - Warehouse Specialist	23.60
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	32.42
23019 - Aircraft Logs and Records Technician	24.92
23021 - Aircraft Mechanic I	30.62
23022 - Aircraft Mechanic II	32.42
23023 - Aircraft Mechanic III	34.30
23040 - Aircraft Mechanic Helper	21.26
23050 - Aircraft, Painter	28.69
23060 - Aircraft Servicer	24.92
23070 - Aircraft Survival Flight Equipment Technician	28.69
23080 - Aircraft Worker	26.71
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	26.71
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	30.62
23110 - Appliance Mechanic	26.47
23120 - Bicycle Repairer	22.25
23125 - Cable Splicer	53.69
23130 - Carpenter, Maintenance	25.91
23140 - Carpet Layer	25.56
23160 - Electrician, Maintenance	29.89
23181 - Electronics Technician Maintenance I	29.34
23182 - Electronics Technician Maintenance II	31.51
23183 - Electronics Technician Maintenance III	33.64
23260 - Fabric Worker	24.00
23290 - Fire Alarm System Mechanic	28.26
23310 - Fire Extinguisher Repairer	22.25
23311 - Fuel Distribution System Mechanic	29.48
23312 - Fuel Distribution System Operator	22.25
23370 - General Maintenance Worker	21.53
23380 - Ground Support Equipment Mechanic	30.62
23381 - Ground Support Equipment Servicer	24.92
23382 - Ground Support Equipment Worker	26.71
23391 - Gunsmith I	22.25
23392 - Gunsmith II	25.71
23393 - Gunsmith III	29.48
23410 - Heating, Ventilation And Air-Conditioning Mechanic	26.51

23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	28.07
23430 - Heavy Equipment Mechanic	30.74
23440 - Heavy Equipment Operator	28.39
23460 - Instrument Mechanic	29.48
23465 - Laboratory/Shelter Mechanic	27.62
23470 - Laborer	19.81
23510 - Locksmith	27.62
23530 - Machinery Maintenance Mechanic	27.91
23550 - Machinist, Maintenance	23.33
23580 - Maintenance Trades Helper	19.17
23591 - Metrology Technician I	29.48
23592 - Metrology Technician II	31.22
23593 - Metrology Technician III	33.02
23640 - Millwright	28.13
23710 - Office Appliance Repairer	27.61
23760 - Painter, Maintenance	23.39
23790 - Pipefitter, Maintenance	34.86
23810 - Plumber, Maintenance	30.45
23820 - Pneudraulic Systems Mechanic	29.48
23850 - Rigger	29.48
23870 - Scale Mechanic	25.71
23890 - Sheet-Metal Worker, Maintenance	28.03
23910 - Small Engine Mechanic	25.71
23931 - Telecommunications Mechanic I	33.54
23932 - Telecommunications Mechanic II	35.51
23950 - Telephone Lineman	26.64
23960 - Welder, Combination, Maintenance	25.42
23965 - Well Driller	29.48
23970 - Woodcraft Worker	29.48
23980 - Woodworker	22.25
24000 - Personal Needs Occupations	
24550 - Case Manager	17.68
24570 - Child Care Attendant	14.74
24580 - Child Care Center Clerk	18.38
24610 - Chore Aide	15.18
24620 - Family Readiness And Support Services Coordinator	17.68
24630 - Homemaker	17.68
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	26.05
25040 - Sewage Plant Operator	23.96
25070 - Stationary Engineer	26.05
25190 - Ventilation Equipment Tender	18.09
25210 - Water Treatment Plant Operator	23.96
27000 - Protective Service Occupations	
27004 - Alarm Monitor	22.34
27007 - Baggage Inspector	18.16
27008 - Corrections Officer	23.16
27010 - Court Security Officer	26.20
27030 - Detection Dog Handler	20.32
27040 - Detention Officer	23.16
27070 - Firefighter	27.31
27101 - Guard I	18.16
27102 - Guard II	20.32
27131 - Police Officer I	28.28
27132 - Police Officer II	31.43
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	18.48
28042 - Carnival Equipment Repairer	20.08
28043 - Carnival Worker	13.48
28210 - Gate Attendant/Gate Tender	19.55
28310 - Lifeguard	16.36
28350 - Park Attendant (Aide)	21.86
28510 - Recreation Aide/Health Facility Attendant	15.96

28515 - Recreation Specialist	27.08
28630 - Sports Official	17.41
28690 - Swimming Pool Operator	23.21
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	25.71
29020 - Hatch Tender	25.71
29030 - Line Handler	25.71
29041 - Stevedore I	24.00
29042 - Stevedore II	27.62
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO) (see 2)	46.07
30011 - Air Traffic Control Specialist, Station (HFO) (see 2)	31.77
30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2)	34.99
30021 - Archeological Technician I	18.83
30022 - Archeological Technician II	21.06
30023 - Archeological Technician III	26.08
30030 - Cartographic Technician	26.08
30040 - Civil Engineering Technician	26.08
30051 - Cryogenic Technician I	28.89
30052 - Cryogenic Technician II	31.90
30061 - Drafter/CAD Operator I	18.83
30062 - Drafter/CAD Operator II	21.06
30063 - Drafter/CAD Operator III	23.47
30064 - Drafter/CAD Operator IV	28.89
30081 - Engineering Technician I	16.77
30082 - Engineering Technician II	18.83
30083 - Engineering Technician III	21.06
30084 - Engineering Technician IV	26.08
30085 - Engineering Technician V	31.90
30086 - Engineering Technician VI	38.60
30090 - Environmental Technician	26.08
30095 - Evidence Control Specialist	26.08
30210 - Laboratory Technician	23.47
30221 - Latent Fingerprint Technician I	28.89
30222 - Latent Fingerprint Technician II	31.90
30240 - Mathematical Technician	26.08
30361 - Paralegal/Legal Assistant I	22.35
30362 - Paralegal/Legal Assistant II	27.69
30363 - Paralegal/Legal Assistant III	33.87
30364 - Paralegal/Legal Assistant IV	40.98
30375 - Petroleum Supply Specialist	31.90
30390 - Photo-Optics Technician	26.08
30395 - Radiation Control Technician	31.90
30461 - Technical Writer I	26.08
30462 - Technical Writer II	31.90
30463 - Technical Writer III	38.60
30491 - Unexploded Ordnance (UXO) Technician I	29.28
30492 - Unexploded Ordnance (UXO) Technician II	35.43
30493 - Unexploded Ordnance (UXO) Technician III	42.46
30494 - Unexploded (UXO) Safety Escort	29.28
30495 - Unexploded (UXO) Sweep Personnel	29.28
30501 - Weather Forecaster I	28.89
30502 - Weather Forecaster II	35.14
30620 - Weather Observer, Combined Upper Air Or Surface Programs	(see 2) 23.47
30621 - Weather Observer, Senior	(see 2) 26.08
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	35.43
31020 - Bus Aide	15.08
31030 - Bus Driver	21.41
31043 - Driver Courier	18.40
31260 - Parking and Lot Attendant	13.42
31290 - Shuttle Bus Driver	17.29
31310 - Taxi Driver	14.04
31361 - Truckdriver, Light	20.00

31362 - Truckdriver, Medium	21.57
31363 - Truckdriver, Heavy	26.61
31364 - Truckdriver, Tractor-Trailer	26.61
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	17.27
99030 - Cashier	14.58
99050 - Desk Clerk	15.34
99095 - Embalmer	29.28
99130 - Flight Follower	29.28
99251 - Laboratory Animal Caretaker I	17.61
99252 - Laboratory Animal Caretaker II	19.14
99260 - Marketing Analyst	33.86
99310 - Mortician	29.28
99410 - Pest Controller	26.95
99510 - Photofinishing Worker	15.39
99710 - Recycling Laborer	29.01
99711 - Recycling Specialist	35.13
99730 - Refuse Collector	25.63
99810 - Sales Clerk	17.09
99820 - School Crossing Guard	16.74
99830 - Survey Party Chief	32.82
99831 - Surveying Aide	20.38
99832 - Surveying Technician	27.72
99840 - Vending Machine Attendant	17.78
99841 - Vending Machine Repairer	22.33
99842 - Vending Machine Repairer Helper	17.78

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-

covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 5 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the "Service Contract Act Directory of Occupations", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable

relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.
- 5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.
- 6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the "Service Contract Act Directory of Occupations" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."

Provisions

52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

Federal Acquisition Regulation: <https://www.acquisition.gov/far>

Department of the Interior Acquisition Regulation: <https://www.acquisition.gov/diar>

CLAUSE NUMBER	CLAUSE TITLE	CLAUSE DATE
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	(Jan 2017)
52.204-6	Unique Entity Identifier.	(Oct 2016)
52.204-7	System for Award Management.	(Nov 2024)
52.204-16	Commercial and Government Entity Code Reporting.	(Aug 2020)
52.204-17	Ownership or Control of Offeror.	(Aug 2020)
52.204-22	Alternative Line Item Proposal.	(Jan 2017)
52.209-2	Prohibition on Contracting with Inverted Domestic Corporations-Representation.	(Nov 2015)
52.212-1	Instructions to Offerors Commercial Products and Commercial Services.	(Sep 2023)
52.212-4	Contract Terms and Conditions commercial Products and Services	(Sep 2023)
52.223-22	Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation.	(Dec 2016)
52.229-11	Tax on Certain Foreign Procurements Notice and Representation (Deviation)	(Sep 2025)

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT. (Nov 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at [52.204-26](#), Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at [52.212-3](#), Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the

provision at [52.204-26](#), or in paragraph (v)(2)(ii) of the provision at [52.212-3](#).

(a) *Definitions.* As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that—

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at

paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION. (Oct 2020)

(a) Definitions. As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c) (1) Representation. The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

52.212-1 Instructions to Offerors-Commercial Products and (Sep 2023) Commercial Services - Addendum

Addendum to FAR Provision 52.212-1

1) To assure timely and equitable evaluation of quotations, vendors must submit all data and information in the instructions contained herein. Vendors are required to meet all RFQ requirements, including terms and conditions, and those identified as evaluation factors. Failure to meet a requirement may result in a quote being ineligible for award. The Government intends to award without discussions but reserves the right to conduct discussions if necessary. Vendors must clearly identify any exceptions to the RFQ's terms and conditions and provide complete rationale. Quotes must be complete, self-sufficient, and respond directly to the requirements of this RFQ, alternate offers will not be accepted. Quotes shall be clear, concise, and shall include sufficient detail for effective evaluation and for substantiating the validity of stated claims. The response shall consist of three (3) separate parts, Part I- Work Plan & Schedule, Part II-Past Performance, and Part III-Price.

2) Upon examination of the initial responses, the contracting officer will review this determination and if, in the contracting officer's opinion, adequate price competition exists, no additional data will be requested. However, if at any time during this competition the contracting officer determines that adequate price competition no longer exists, vendors may be required to submit other than certified cost data to the extent necessary for the contracting officer to determine the reasonableness and affordability of the price.

3) If this solicitation is amended, all terms and conditions that are not amended remain unchanged and in full force and effect. Vendors shall acknowledge receipt of any amendment and provide confirmation upon submission of the offeror's quote.

4) Quote Instructions:

a) Work Plan & Schedule – The Work Plan, at a minimum, shall provide a clear, effective, and detailed explanation of how your firm will accomplish the requirements set forth in the performance work statement and should address the equipment considered for accomplishing the performance work statement. The proposed schedule, at a minimum, shall address in detail the proper milestones and number of days for performing and accomplishing the work.

b) Past Performance – Any and all knowledge and information in the possession of the Contracting Officer will be used to evaluate the quality of past performance, including, but not limited to, references provided by the quoter for recent and relevant contracts for the same or similar services. In addition, CPARS and any other Past Performance database information may be used. Offerors will be given an opportunity to address adverse past performance information if it is expected to have a significant impact on the evaluation.

c) Price – Insert proposed unit price and total price for CLIN 00010 on the SF/table on page 1 and Price Schedule A (Attachment #1). The sum of all Lump Sum values in Price Schedule A should match the total price for LCIN 00010 on the SF 1449 (Page 1) of the solicitation. Identify and include all applicable discounts as the quote shall reflect best and final pricing. Proposed pricing will be evaluated for price reasonableness and whether the pricing is balanced. Per FAR 13.106-2(b)(3), the Contracting Officer may perform a comparative review of proposals. All lump sum proposed prices in Schedule A shall be Firm Fixed Price.

52.212-2 Evaluation—Commercial Products and Commercial Services

(Nov 2021)

A comparative evaluation will be performed in accordance with FAR 13.106-2(b)(3). Quotes will be evaluated by performing a direct comparison of one quote to another in a uniform manner to determine which quote provides the government's need as identified in the RFQ. Each quote shall be evaluated based on Work Plan & Schedule, Past Performance, and Price.

At a minimum, quotes must meet the RFQ (requirement statement). Quotes may exceed the government's need and the government reserves the right to consider such quotes. However, the government is not required to select a quote that exceeds the minimum need but does have the discretion to accept other than the lowest price quote, provided the quote offers additional benefit to the government.

*See the clause "Quote Instruction" in FAR Provision 52.212-1 addendum, paragraph (4) for specific information. You can put some of the instructions you have to help ensure you get what you need and that is what this reference is.

52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAY 2024)(DEVIATION FEB 2025)

The *Offeror shall* complete only paragraph (b) of this provision if the *Offeror* has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the *Offeror* has not completed the annual representations and certifications electronically, the *Offeror shall* complete only paragraphs (c) through (v) of this provision.

(a) *Definitions*. As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause [52.204-25](#), Prohibition on *Contracting* for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small

business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the *United States* and who are economically disadvantaged in accordance with [13 CFR part 127](#), and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#). It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service—

- (1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not *offer* himself voluntarily; or
- (2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an *immediate owner* of the *offeror*, or that owns or controls one or more entities that control an *immediate owner* of the *offeror*. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the *offeror*, that has direct control of the *offeror*. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an *inverted domestic corporation* under [6 U.S.C. 395](#)(b), applied in accordance with the rules and definitions of [6 U.S.C. 395](#)(c).

Manufactured end product means any *end product* in product and service codes (PSCs) 1000-9999, except—

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural *Supplies*;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal *Products*, Inedible;

- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry *Products*;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an *end product* is assembled out of *components*, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the *place of manufacture*.

Predecessor means an entity that is replaced by a *successor* and includes any *predecessors* of the *predecessor*.

Reasonable inquiry has the meaning provided in the clause [52.204-25](#), Prohibition on *Contracting* for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). *Restricted business operations* do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended. "*Sensitive technology*"—

Sensitive technology—

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—
 - To restrict the free flow of unbiased information in Iran; or
 - To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a *small business concern*

- (1)

- (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
 - (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran;

or

(2) A *small business concern* eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart [19.14](#)).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in [38 U.S.C. 101\(2\)](#), with a disability that is service connected, as defined in [38 U.S.C. 101\(16\)](#), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or *successor* system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that—

(1) Effective January 1, 2024, is designated in the *System for Award Management (SAM)* as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes *contracting officers* to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern—

(1) Means a concern, including its *affiliates*, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in [13 CFR part 121](#) and size standards in this *solicitation*.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the *acquisition*, that—

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the *United States*;

and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned—

(1) Directly by a parent corporation; or

(2) Through another *subsidiary* of a parent corporation

Successor means an entity that has replaced a *predecessor* by acquiring the assets and carrying out the affairs of the *predecessor* under a new name (often through *acquisition* or merger). The term

"successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the *successor* for the liabilities of the *predecessor* may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a *small business concern*—

- (1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and
- (2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a *small business concern*—

- (1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and
- (2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with [13 CFR part 127](#)), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the *United States*, and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#).

(b)

- (1) *Annual Representations and Certifications*. Any changes provided by the *Offeror* in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.
- (2) The *offeror* has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the *Offeror* verifies by submission of this *offer* that the representations and certifications currently posted electronically at FAR [52.212-3](#), *Offeror Representations and Certifications-Commercial Products and Commercial Services*, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this *solicitation* (including the business size standard(s) applicable to the NAICS code(s) referenced for this *solicitation*), at the time this *offer* is submitted and are incorporated in this *offer* by reference (see FAR [4.1201](#)), except for paragraphs __.

[*Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.*

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) *Offerors must* complete the following representations when the resulting contract is for *supplies* to be delivered or services to be performed in the *United States* or its *outlying areas*, or when the contracting officer has applied [part 19](#) in accordance with [19.000\(b\)\(1\)\(ii\)](#). Check all that apply.

(1) *Small business concern*. The *offeror* represents as part of its *offer* that—

- (i) It ☐ is, ☐ is not a small business concern; or
- (ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of [13 CFR](#)

[121.103\(h\)](#) and [13 CFR 125.8\(a\)](#) and [\(b\)](#). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(2) *Veteran-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(5) *Small disadvantaged business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in [13 CFR 124.1001](#).

(6) *Women-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of [13 CFR 127.506\(a\)](#) through [\(c\)](#). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of [13 CFR 127.506\(a\)](#) through [\(c\)](#). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that—

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see [13 CFR 126.200\(e\)\(1\)](#)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of [13 CFR 126.616\(a\)](#) through [\(c\)](#). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) [RESERVED].

(e) *Certification Regarding Payments to Influence Federal Transactions* (31

<http://uscode.house.gov/> U.S.C. 1352). (Applies only if the contract is expected to exceed \$150,000.) By submission of its *offer*, the *offeror* certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the *offeror* with respect to this contract, the *offeror* shall complete and submit, with its *offer*, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The *offeror* need not report regularly employed officers or employees of the *offeror* to whom payments of reasonable compensation were made.

(f) *Buy American Certificate*. (Applies only if the clause at Federal Acquisition Regulation (FAR) [52.225-1](#), *Buy American-Supplies*, is included in this *solicitation*.)

(1)

(i) The *Offeror* certifies that each *end product*, except those listed in paragraph (f)(2) of this provision, is a domestic *end product* and that each domestic *end product* listed in paragraph (f)(3) of this provision contains a critical *component*.

(ii) The *Offeror* shall list as foreign *end products* those *end products* manufactured in the *United States* that do not qualify as domestic *end products*. For those foreign *end products* that do not consist wholly or predominantly of iron or steel or a combination of both, the *Offeror* shall also indicate whether these foreign *end products* exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The *Offeror* shall separately list the *line item numbers* of domestic *end products* that contain a critical *component* (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical *component*," "domestic end product," "*end product*," "foreign *end product*," and "*United States*" are defined in the clause of this *solicitation* entitled "*Buy American-Supplies*."

(2) Foreign *End Products*:

<i>Line Item No.</i>	<i>Country of Origin</i>	<i>Exceeds 55% domestic content (yes/no)</i>
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[List as necessary]

(3) Domestic *end products* containing a critical *component*:

Line Item No. ____

[List as necessary]

(4) The Government will evaluate *offers* in accordance with the policies and procedures of FAR [part 25](#).

(g)

(1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate*. (Applies only if the clause at FAR [52.225-3](#), *Buy American-Free Trade Agreements-Israeli Trade Act*, is included in this solicitation.)

(i)

(A) The *Offeror* certifies that each *end product*, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic *end product* listed in paragraph (g)(1)(iv) of this provision contains a critical *component*.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian *end product*," "commercially available off-the-shelf (COTS) item," "critical *component*," "domestic end product," "*end product*," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country *end product*," "Israeli *end product*," and "*United States*" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The *Offeror* certifies that the following *supplies* are Free Trade Agreement country *end products* (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian *end products*) or Israeli *end products* as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country *End Products* (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian *End Products*) or *Israeli End Products*:

Line Item No.	Country of Origin
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[List as necessary]

(iii) The *Offeror shall* list those *supplies* that are foreign *end products* (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The *Offeror shall* list as other foreign *end products* those *end products* manufactured in the *United States* that do not qualify as domestic *end products*. For those foreign *end products* that do not consist wholly or predominantly of iron or steel or a combination of both, the *Offeror shall* also indicate whether these foreign *end products* exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
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[List as necessary]

(iv) The *Offeror shall* list the *line item numbers* of domestic *end products* that contain a critical *component* (see FAR [25.105](#)).

Line Item No. ____

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR [part 25](#).

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II.* If *Alternate II* to the clause at FAR [52.225-3](#) is included in this *solicitation*, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The *offeror* certifies that the following *supplies* are Israeli *end products* as defined in the clause of this *solicitation* entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:
Israeli End Products:

Line Item No.

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III.* If *Alternate III* to the clause at [52.225-3](#) is included in this *solicitation*, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms “Korean *end product*”, “*commercially available off-the-shelf (COTS) item*,” “*critical component*,” “*domestic end product*,” “*end product*,” “*foreign end product*,” “Free Trade Agreement country,” “Free Trade Agreement country *end product*,” “*Israeli end product*,” and “*United States*” are defined in the clause of this *solicitation* entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

(g)(1)(ii) The *Offeror* certifies that the following *supplies* are Korean *end products* or Israeli *end products* as defined in the clause of this *solicitation* entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Korean *End Products* or Israeli *End Products*:

Line Item No. Country of Origin

[List as necessary]

(4) *Trade Agreements Certificate.* (Applies only if the clause at FAR [52.225-5](#), Trade Agreements, is included in this *solicitation*.)

(i) The *offeror* certifies that each *end product*, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country *end product*, as defined in the clause of this *solicitation* entitled "Trade Agreements."

(ii) The *offeror shall* list as other *end products* those *end products* that are not U.S.-made or designated country *end products*.

Other End Products:

Line Item No. Country of Origin

[List as necessary]

(iii) The Government will evaluate *offers* in accordance with the policies and procedures of FAR [part 25](#). For line items covered by the WTO GPA, the Government will evaluate *offers* of U.S.-made or designated country *end products* without regard to the restrictions of the Buy American

statute. The Government will consider for award only *offers* of U.S.-made or designated country *end products* unless the *Contracting Officer* determines that there are no *offers* for such *products* or that the *offers* for such *products* are insufficient to fulfill the requirements of the *solicitation*.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the *simplified acquisition threshold*.) The *offeror* certifies, to the best of its knowledge and belief, that the *offeror* and/or any of its principals—

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for *debarment*, or declared *ineligible* for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this *offer*, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of *offers*; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this *offer*, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at [9.104-5\(a\)\(2\)](#) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined*. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment*. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples*.

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. *Should* the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. *Should* the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126)*. [The *Contracting Officer* must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at [22.1503\(b\)](#).]

(1) *Listed end products.*

Listed End Product	Listed Countries of Origin

(2) *Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]*

☐ (i) The *offeror* will not supply any *end product* listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

☐ (ii) The *offeror may* supply an *end product* listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The *offeror* certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the *offeror* certifies that it is not aware of any such use of child labor.

(j) *Place of manufacture.* (Does not apply unless the *solicitation* is predominantly for the acquisition of *manufactured end products*.) For statistical purposes only, the *offeror shall* indicate whether the place of manufacture of the *end products* it expects to provide in response to this *solicitation* is predominantly-

(1) ☐ In the *United States* (Check this box if the total anticipated price of offered *end products* manufactured in the *United States* exceeds the total anticipated price of offered *end products* manufactured outside the *United States*); or

(2) ☐ Outside the *United States*.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the *offeror* as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [*The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.*]

☐ (1) Maintenance, calibration, or repair of certain equipment as described in FAR [22.1003-4\(c\)\(1\)](#). The *offeror* ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the *offeror* (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR [22.1003-4\(c\)\(2\)\(ii\)](#)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

☐ (2) Certain services as described in FAR [22.1003-4\(d\)\(1\)](#). The *offeror* ☐ does ☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the *offeror* (or subcontractor in the case of an exempt subcontract) to the

general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR [22.1003-4\(d\)\(2\)\(iii\)](#));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies—

(i) If the *offeror* does not certify to the conditions in paragraph (k)(1) or (k)(2) and the *Contracting Officer* did not attach a Service Contract Labor Standards wage determination to the *solicitation*, the *offeror shall* notify the *Contracting Officer* as soon as possible; and

(ii) The *Contracting Officer* may not make an award to the *offeror* if the *offeror* fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the *Contracting Officer* as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* ([26 U.S.C. 6109](#), [31 U.S.C. 7701](#)). (Not applicable if the *offeror* is required to provide this information to the SAM to be eligible for award.)

(1) All *offerors must* submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of [31 U.S.C. 7701\(c\)](#) and [3325\(d\)](#), reporting requirements of [26 U.S.C. 6041](#), [6041A](#), and [6050M](#), and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN *may* be used by the Government to collect and report on any delinquent amounts arising out of the *offeror's* relationship with the Government ([31 U.S.C. 7701\(c\)\(3\)](#)). If the resulting contract is subject to the payment reporting requirements described in FAR [4.904](#), the TIN provided hereunder *may* be matched with IRS records to verify the accuracy of the *offeror's* TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ *Offeror* is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ *Offeror* is an agency or instrumentality of a foreign government;

☐ *Offeror* is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR 1.6049-4;

☐ Other _____.

(5) *Common parent*.

☐ *Offeror* is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name _____.

TIN _____.

(m) *Restricted business operations in Sudan*. By submission of its *offer*, the *offeror* certifies that the

offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on *Contracting with Inverted Domestic Corporations*.

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a *subsidiary* of an inverted domestic corporation, unless the exception at [9.108-2\(b\)](#) applies or the requirement is waived in accordance with the procedures at [9.108-4](#).

(2) *Representation*. The *Offeror* represents that—

- (i) It ☐ is, ☐ is not an inverted domestic corporation; and
- (ii) It ☐ is, ☐ is not a *subsidiary* of an *inverted domestic corporation*.

(o) Prohibition on *contracting* with entities engaging in certain activities or transactions relating to Iran.

(1) The *offeror shall* e-mail questions concerning *sensitive technology* to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications*. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its *offer*, the *offeror*—

(i) Represents, to the best of its knowledge and belief, that the *offeror* does not export any *sensitive technology* to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the *offeror*, or any person owned or controlled by the *offeror*, does not engage in any activities for which sanctions *may* be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the *offeror*, and any person owned or controlled by the *offeror*, does not knowingly engage in any transaction that exceeds the threshold at FAR [25.703-2\(a\)\(2\)](#) with Iran's Revolutionary Guard Corps or any of its officials, agents, or *affiliates*, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if—

(i) This *solicitation* includes a trade agreements certification (e.g., [52.212-3\(g\)](#) or a comparable agency provision); and

(ii) The *offeror* has certified that all the offered *products* to be supplied are designated country *end products*.

(p) *Ownership or Control of Offeror*. (Applies in all *solicitations* when there is a requirement to be registered in SAM or a requirement to have a *unique entity identifier* in the *solicitation*).

(1) The *Offeror* represents that it ☐ has or ☐ does not have an *immediate owner*. If the *Offeror* has more than one *immediate owner* (such as a joint venture), then the *Offeror shall* respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the *Offeror* indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: _____.

Immediate owner legal name: _____.

(Do not use a "doing business as" name)

Is the *immediate owner* owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the *Offeror* indicates "yes" in paragraph (p)(2) of this provision, indicating that the *immediate owner* is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: _____.

Highest-level owner legal name: _____.

(Do not use a "doing business as" name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that—

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered *suspension* or *debarment* of the corporation and made a determination that *suspension* or *debarment* is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the *conviction*, unless an agency has considered *suspension* or *debarment* of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The *Offeror* represents that—

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror.* (Applies in all *solicitations* that include the provision at [52.204-16](#), Commercial and Government Entity Code Reporting.)

(1) The *Offeror* represents that it ☐ is or ☐ is not a *successor* to a *predecessor* that held a Federal contract or grant within the last three years.

(2) If the *Offeror* has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all *predecessors* that held a Federal contract or grant within the last three years (if more than one *predecessor*, list in reverse chronological order):

Predecessor CAGE code: (or mark "Unknown").

Predecessor legal name: _____.

(Do not use a "doing business as" name).

(s) [Reserved].

(t) [Reserved].

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its *successor* provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a

Federal department or agency governing the nondisclosure of *classified information*.

(3) *Representation*. By submission of its *offer*, the *Offeror* represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (*e.g.*, agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation*. Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The *Offeror shall* review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The *Offeror* represents that—

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered *products* or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a *reasonable inquiry* for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

52.229-11 TAX ON CERTAIN FOREIGN PROCUREMENTS - NOTICE AND REPRESENTATION (DEVIATION) (SEP 2025)

(a) Definitions. As used in this provision—

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if—

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that—I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then—

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

52.204-29 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS— REPRESENTATION AND DISCLOSURES. (DEC 2023)

(a) *Definitions.* As used in this provision, *Covered article*, *FASCSA order*, *Intelligence community*, *National security system*, *Reasonable inquiry*, *Sensitive compartmented information*, *Sensitive compartmented information system*, and *Source* have the meaning provided in the clause [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(c) *Procedures.*

(1) The Offeror shall search for the phrase “FASCSA order” in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR [4.2303\(c\)\(2\)](#)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) *Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) *Disclosures.* The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

- (1) Name of the product or service provided to the Government;
- (2) Name of the covered article or source subject to a FASCSA order;
- (3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;
- (4) Brand;
- (5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);
- (6) Item description;
- (7) Reason why the applicable covered article or the product or service is being provided or used;

(f) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

**DIAR 1452.215-71 USE AND DISCLOSURE OF PROPOSAL INFORMATION --
DEPARTMENT OF THE INTERIOR (APR 1984)**

(a) Definitions. For the purposes of this provision and the Freedom of Information Act (5 U.S.C. 552), the following terms shall have the meaning set forth below:

- (1) "Trade Secret" means an unpatented, secret, commercially valuable plan, appliance, formula, or process, which is used for making, preparing, compounding, treating or processing articles or materials which are trade commodities.
- (2) "Confidential commercial or financial information" means any business information (other than trade secrets) which is exempt from the mandatory disclosure requirement of the Freedom of Information Act, 5 U.S.C. 552. Exemptions from mandatory disclosure which may be applicable to business information contained in proposals include exemption (4), which covers "commercial and financial information obtained from a person and privileged or confidential," and exemption (9), which covers "geological and geophysical information, including maps, concerning wells."

(b) If the offeror, or its subcontractor(s), believes that the proposal contains trade secrets or confidential commercial or financial information exempt from disclosure under the Freedom of Information Act, (5 U.S.C. 552), the cover page of each copy of the proposal shall be marked with the following legend:

"The information specifically identified on pages _____ of this proposal constitutes trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act. The offeror requests that this information not be disclosed to the public, except as may be required by law. The offeror also requests that this information not be used in whole or part by the government for any purpose other than to evaluate the proposal, except that if a contract is awarded to the offeror as a result of or in connection with the submission of the proposal, the Government shall have the right to use the information to the extent provided in the contract."

(c) The offeror shall also specifically identify trade secret information and confidential commercial and financial information on the pages of the proposal on which it appears and shall mark each such page with the following legend:

"This page contains trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act and which is subject to the legend contained on the cover page of this proposal."

(d) Information in a proposal identified by an offeror as trade secret information or confidential commercial and financial information shall be used by the Government only for the purpose of evaluating the proposal, except that (i) if a contract is awarded to the offeror as a result of or in connection with submission of the proposal, the Government shall have the right to use the information as provided in the contract, and (ii) if the same information is obtained from another source without restriction it may be used without restriction.

(e) If a request under the Freedom of Information Act seeks access to information in a proposal identified as trade secret information or confidential commercial and financial information, full consideration will be given to the offeror's view that the information constitutes trade secrets or confidential commercial or financial information. The offeror will also be promptly notified of the request and given an opportunity to provide additional evidence and argument in support of its position, unless administratively unfeasible to do so. If it is determined that information claimed by the offeror to be trade secret information or confidential commercial or financial information is not exempt from disclosure under the Freedom of Information Act, the offeror will be notified of this determination prior to disclosure of the information.

(f) The Government assumes no liability for the disclosure or use of information contained in a proposal if not marked in accordance with paragraphs (b) and (c) of this provision. If a request under the Freedom of Information Act is made for information in a proposal not marked in accordance with paragraphs (b) and (c) of this provision, the offeror concerned shall be promptly notified of the request and given an opportunity to provide its position to the Government. However, failure of an offeror to mark information contained in a proposal as trade secret information or confidential commercial or financial information will be treated by the Government as evidence that the information is not exempt from disclosure under the Freedom of Information Act, absent a showing that the failure to mark was due to unusual or extenuating circumstances, such as a showing that the offeror had intended to mark, but that markings were omitted from the offeror's proposal due to clerical error.

**52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS
(Deviation)**

(Jan 2026)

(a) Definitions. As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) (13 CFR 126.103).

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) The North American Industry Classification System (NAICS) code for this acquisition is _____ [insert NAICS code].

(2) The small business size standard is _____ [insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) Representations.(1) The offeror represents as part of its offer that—

(i) it ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small disadvantage business concern.

(3) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) SDVOSB joint venture eligible under the SDVOSB Program. [Complete only if the offeror is certified as a SDVOSB concern]. The offeror represents as part of its offer that it ☐ is, ☐ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) HUBZone joint venture eligible under the HUBZone Program. [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that it ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The

offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) Notice. Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be—

- (1) Punished by imposition of fine, imprisonment, or both;
- (2) Subject to administrative remedies, including suspension and debarment; and
- (3) Ineligible for participation in programs conducted under the authority of the Act.

**1452.233-2 SERVICE OF PROTEST DEPARTMENT OF THE INTERIOR (JUL 1996)
(DEVIATION)**

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Mitchell J. Frost, Contracting Officer
Bureau of Reclamation
mfrost@usbr.gov
419-308-6305

- (b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.
- (c) A copy of the protest served on the Contracting Officer shall be simultaneously furnished by the protester to the Department of the Interior Assistant Solicitor, Acquisitions and Intellectual Property, 1849 C Street, NW., Room 6511, Washington, DC 20240.